

SYRIA 2014 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

The authoritarian regime of President Bashar Asad has ruled the Syrian Arab Republic since 2000. The regime routinely violated the human rights of its citizens as the country witnessed major political conflict. The regime's widespread use of deadly military force to quell peaceful civil protests calling for reform and democracy precipitated a civil war in 2012, leading to armed groups taking control of major parts of the country. In government-controlled areas, Asad makes key decisions with counsel from a small number of military and security advisors, ministers, and senior members of the ruling Baath (Arab Socialist Renaissance) Party. The constitution mandates the primacy of Baath Party leaders in state institutions and society. Asad and Baath party leaders dominated all three branches of government. In June, for the first time in decades, the Baath Party permitted multi-candidate presidential elections (in contrast to single-candidate referendums administered in previous elections), but the campaign and election were neither free nor fair by international standards. The election resulted in a third seven-year term for Asad. The geographically limited 2012 parliamentary elections, won by the Baath Party, were also neither free nor fair, and several opposition groups boycotted them. The government maintained effective control over its uniformed military, police, and state security forces but did not consistently maintain effective control over paramilitary, nonuniformed proregime militias such as the National Defense Forces, the "Bustan Charitable Association," or "shabiha," which often acted autonomously without oversight or direction from the government.

The civil war continued during the year. The regime maintained control over the coastal governorates and governorates in and around Damascus and regularly attacked areas of the country under opposition control. Different opposition groups with varying ideologies and goals controlled several parts of the north and areas in the Golan Heights, in many cases establishing new or reconstituted governance structures, including irregularly constituted courts. Most notably, the terrorist organization the Islamic State of Iraq and the Levant (ISIL)--also known as the Islamic State of Iraq and Syria (ISIS), the Islamic State, or "Daesh" in Arabic--increasingly took control of the eastern governorates of Raqqqa and Dayr al-Zawr beginning in 2013 and consolidated its hold throughout the year. On June 29, ISIL announced the establishment of an Islamic "caliphate" in Iraq and Syria with its nominal capital in the city of Raqqqa. ISIL also maintained limited presence in other governorates in the north and south and around Damascus. Other

areas of the country remained contested, including the northeastern areas dominated by ethnic Kurds and the Turkish border.

The Asad regime continued to use indiscriminate and deadly force against civilians, conducting air and ground-based military assaults on cities, residential areas, and civilian infrastructure. Attacks against schools, hospitals, mosques, churches, synagogues, and houses were common throughout the country. The United Nations estimated the fighting had resulted in the deaths of more than 200,000 persons since March 2011. The Syrian Network for Human Rights (SNHR) reported the regime conducted 32,507 extrajudicial killings during the year. The humanitarian situation reached severe levels. As of December there were more than 3.2 million Syrian refugees registered with the Office of the UN High Commissioner for Refugees (UNHCR) in neighboring states and North Africa, with more than 7.6 million persons displaced internally; actual figures of refugees and the internally displaced may have been higher. The regime frequently blocked access for humanitarian assistance to civilian areas, particularly areas held by opposition groups.

The most egregious human rights problems stemmed from indiscriminate military strikes and the complete denial of citizens' ability to change their government peacefully through free and fair elections. There were widespread abuses and violations of persons whom the government arbitrarily and unlawfully killed, tortured, and detained. Government forces conducted systematic attacks against civilians in hospitals, residential areas, schools, and camps holding internally displaced persons (IDPs); these attacks included indiscriminate bombardment with improvised explosive devices commonly referred to as "barrel bombs" (containing a combination of jet fuel and TNT, usually dropped by a helicopter). The regime continued the systematic and widespread use of torture and rape, including against children. It used the massacre of civilians, as well as their forced displacement and starvation, as military tactics. The government rigorously denied citizens the right to exercise civil liberties, such as freedom of speech and press, movement, peaceful assembly and association, and the right to a fair public trial. The government detained without access to fair trial tens of thousands of individuals associated with nongovernmental organizations (NGOs), human rights activists, journalists, humanitarian aid providers, religious figures, and physicians.

Other human rights problems included the following: targeted killing of protesters, bystanders, journalists, and medical professionals; kidnappings and disappearances; torture and abuse, including of women and children; squalid prison and detention center conditions; arbitrary arrest and detention; political prisoners

and detainees; denial of fair public trial; arbitrary interference with privacy, family, home, and correspondence; and the use of rape and assault as punishment and an instrument of war. The government restricted press, internet, and academic freedoms. The government continued to restrict freedoms of religion and movement. There was massive abuse of refugees and stateless persons. The government continued to restrict NGOs and individual activists from organizing, especially those working on civil society and democracy matters. The regime consistently limited medical providers' access to persons in critical need. Corruption was rampant throughout the government. Violence and societal discrimination against women and minorities continued, and workers' rights remained restricted.

Impunity was pervasive and deeply embedded in the security forces and elsewhere in the regime, since the regime did not attempt to investigate, punish, arrest, or prosecute officials who violated human rights. The regime often sheltered and encouraged those in its ranks to commit abuses.

According to credible reports, regime-linked, paramilitary groups engaged in widespread violations and abuses, including massacres, indiscriminate killings, kidnappings of civilians, arbitrary detentions, and rape as a war tactic. Government-affiliated militias, including the terrorist organization Lebanese Hizballah, supported by Iran, repeatedly targeted civilians. Hizballah, for example, killed and injured hundreds of civilians in a June offensive in the outskirts of Damascus.

Some extremist opposition organizations, including armed terrorist groups such as the al-Qaida-linked Jabhat al-Nusra, also committed a wide range of abuses, including massacres, bombings, and kidnappings; unlawful detention; torture; summary executions; and forced evacuations from homes based on sectarian identity. ISIL took control of the eastern provinces of Raqqah and Dayr al-Zawr, where it committed massive human rights abuses, according to numerous human rights organizations, the media, UN reports, and ISIL itself. According to the media and eyewitnesses, these included the mass execution of 700-900 members of the Sheitaat tribe from Dayr al-Zawr; stonings of women and men accused of adultery; crucifixions of civilians; forced marriages of kidnapped girls and women; and public beheadings of foreign journalists, aid workers, and others. Human trafficking increased, including the forcible recruitment and use of children in the conflict, as well as reports of forced marriages of women and underage girls for the purpose of sexual slavery among ISIL fighters.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary or Unlawful Deprivation of Life

There were thousands of reports the government and its agents committed arbitrary or unlawful killings in relation to the civil war (see section 1.g.). ISIL also committed a large number of abuses and violations. Other Syrian opposition forces also engaged in abuses (see section 1.g.).

b. Disappearance

The UN Commission of Inquiry on Syria (COI) reported the number of forced disappearances remained high. The vast majority of disappearances reported by activists, human rights observers, and international NGOs appeared to be politically motivated. The regime targeted critics, specifically medical personnel, antigovernment protesters, their families, and associates (see section 1.g.). The COI reported government forces engaged in mass arrest campaigns leading to the enforced disappearance of fighting-age men in areas that fell under their control, particularly following the seizure of Yabroud in March and the truces in Assal al-Ward in April and the city of Homs in May. The COI noted further that the families of disappeared persons were often afraid to approach authorities to inquire about the whereabouts of their relatives; those who did so faced systematic refusal by authorities to disclose information about the fate of disappeared individuals. The October 23 UN Security Council report on the implementation of UN Security Council Resolution 2165 noted 27 UN national staff members were detained or missing.

Amnesty International (AI) reported the government provided no further information on the thousands of individuals who had disappeared since the start of the conflict or the 17,000 who had disappeared since the 1970s. Human rights groups' estimates of the total number of disappearances since 2011 varied widely, but all estimates pointed to disappearances as a pervasive and common practice. The SNHR estimated more than 10,000 persons were forcibly abducted and disappeared during the year and thousands more were held in secret detention facilities run by proregime militias and other intelligence and security forces.

Antigovernment armed extremist groups conducted kidnappings, particularly in the northern areas, targeting religious leaders, aid workers, suspected regime affiliates, journalists, and activists. According to the COI, reports of enforced

disappearances in territory held by ISIL, particularly Raqqa and Aleppo, also increased.

The COI also reported many individuals changed their routes to and from work or refused to leave their homes due to fear of enforced disappearances facilitated through checkpoints.

At year's end there were no known developments in cases of disappearances from prior years, including: Abdel Aziz al-Khair, Abdel Aziz Kamal al-Rihawi, Berazani Karro, Kamal Sheikho, Yassin Ziadeh, Razan Zeitouneh, Wael Hamada, Samira Khalil, Nazim Hamadi, bishops Bolous Yazigi and Yohanna Ibrahim, and priest Paulo Dall'Oglio, among the estimated thousands of disappearances noted by activists and media. During the year reports of enforced disappearances in territory held by ISIL also increased. According to multiple, credible reports, ISIL targeted activists, journalists, women, children, and minorities for kidnappings. According to the SNHR, ISIL detained 486 women and 455 children, and other armed groups detained 580 women and 1,000 children. According to the Free Syrian Lawyers Association, on July 21, Kurdish "asayish" security forces affiliated to the Kurdish Democratic Union Party (PYD) arrested Khalil Arfu and Sukfan Amin Hamza from Derek, Hasakah province, and members of the Kurdistan Democratic Party; their location and status were unknown at year's end.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The law prohibits torture and other cruel, inhuman, or degrading treatment or punishment, and the penal code provides up to three years' imprisonment for violations. Nonetheless, the COI and local NGOs reported government authorities continued to engage in widespread, systematic torture, both during interrogations and to punish perceived opponents. Observers reported most cases of torture or mistreatment occurred in detention centers operated by each of the four security service branches. The COI concluded that deaths as a result of torture by government forces occurred. The COI reported widespread and systematic use of torture documented at checkpoints and multiple facilities run by the Air Force, Political Security Division, General Intelligence Division, and Military Security. It identified specific detention facilities where torture took place in Damascus, including Mezzeh airport detention facility; Military Security Branch 215; Military Security Branch 235 (also known as the "Palestine branch"); Military Security Branch 227; Damascus Political Security Branch; Adra prison; Harasta Air Force Intelligence branch; and Harasta Military Hospital.

Activists cited thousands of credible cases of security forces abusing and torturing prisoners and detainees and maintained that many instances of abuse went unreported. Some victims died from torture; others declined to allow their names or details of their cases to be reported due to fear of government reprisal.

The SNHR reported 1,993 persons died as a result of torture in government facilities during the year alone, including at least 11 children and nine women. In October the SNHR reported 5,514 documented cases of death by government torture since the beginning of the uprising in 2011, including 95 children and 32 women. The SNHR asserted 95 percent of the victims were human rights activists, protesters, and journalists. The regime continued to arrest high-profile opposition activists, such as Louay Hussein, founder of the Building a Syrian State party, whom authorities arrested on November 12 at the Lebanese border.

In 2013 a defector from the regime--a former military police photographer known as "Caesar"--smuggled out thousands of photographs from inside government detention centers dating from 2011 to 2013. According to the COI, a preliminary review and forensic analysis of nearly 27,000 of the photographs identified deceased detainees showing signs of torture and severe malnourishment. The COI asserted the methods of torture and the conditions of detention, as evidenced in the photographs in Military Hospital No. 601 in Damascus, supported the commission's longstanding findings of systematic torture and deaths of detainees.

Human Rights Watch (HRW) reported the government detained tens of thousands of protesters and activists, inflicting beatings, electric shocks, rape, and other abuse. The organization identified detention facilities across the country used to detain and torture government opponents. The SNHR reported the government operated at least 88 detention centers nationwide, including in military facilities. Numerous NGOs asserted that the practice of returning corpses to family members to announce their deaths continued and that corpses exhibited signs of torture.

There were widespread reports government security forces engaged in abuse and inhuman treatment of prisoners. According to the COI, most were civilians initially held at checkpoints or taken prisoner during military incursions. While the majority of accounts concerned male detainees, there were increased reports of female detainees suffering abuse in government custody. The frequency, duration, and severity of the abuse suggested victims sustained long-term psychological and physical damage.

The COI outlined several specific accounts, including a detainee released during the year after authorities held him for more than two years in al-Ghirz prison in Dara'a. The detainee chronicled severe beatings that resulted in partial paralysis and damage to his spinal cord, as documented in medical records. A man arrested in Dara'a suffered daily beatings, while authorities burned his cellmates with cigarettes. Authorities beat and suspended from the ceiling by his wrists a man detained in April.

Officers at Latakia's Military Security Branch systematically tortured, beat, punched, and kicked detainees. Officers continued the practice of "shabeh," by which they stripped detainees naked, hung them for prolonged periods from the ceiling, and administered electrical shocks. HRW visited an abandoned regime detention facility in Raqqa and reported in May that they witnessed evidence of torture instruments, including a wooden limb-stretching device known as "bsat al-reeh." The SNHR released a report on Branch 215, a military intelligence detention facility in Damascus allegedly holding more than 7,500 prisoners. Testimony from former Branch 215 prisoners included in the SNHR report highlighted severe and pervasive physical and psychological abuse of prisoners, including sexual harassment of female prisoners, frequent beatings, and withholding or severely limiting access to food and water. The SNHR documented authorities' use of 45 methods of torture, including eight common positions involving tying the prisoners' hands and beating their bodies with wires or sticks, particularly in genital areas. Other reported methods of physical torture included removal of nails and hair; stabbing and cutting off body parts, including ears and genitals; beating the bare soles of feet (falaqua); burning with acid or cigarettes; applying electric shocks; denying medical care; and hanging. Multiple human rights organizations reported other forms of torture, including forcing objects into the rectum and vagina, hyperextending the spine, and putting the victim onto the frame of a wheel and whipping exposed body parts. Medical professionals reported witnessing corpses that were burned alive in regime detention facilities. In addition to physical torture, the SNHR also reported 14 methods of psychological torture, including threatening prisoners with death; forcing prisoners to witness the death, rape, or torture of other prisoners; offending or denigrating the prisoner's religious beliefs; and threatening family members (in particular female family members) with rape.

The COI reported that beginning in 2011, security forces subjected detainees to mistreatment in military hospitals, often obstructing medical care or exacerbating existing injuries as an abuse and interrogation technique. There were multiple reports of deaths in custody at the Mezzeh airport detention facility, Military

Security Branches 215 and 235, and Sednaya Prison. Authorities consistently directed families of detainees seeking information to the Qaboun Military Police and Tishreen Military Hospital. In most cases authorities did not return the bodies of deceased detainees to their families. Authorities reportedly buried many victims in the Najha cemetery. Various NGOs, including HRW, AI, and the SNHR, continued to report widespread instances of rape and sexual abuse, including of minors. The COI reported receiving reports of interrogators raping and sexually abusing male detainees held in Branch 285 of the General Directorate of Intelligence in Damascus. A June HRW report noted that military intelligence officials in Tartus and Air Force Intelligence officials in Mezze, Damascus, raped female political activists held in their custody. An April SNHR report and June al-Jazeera television report featuring interviews with women formerly held in state prisons and detention facilities included similar findings.

There continued to be a significant number of exceptionally brutal cases of abuse of children by the regime. The COI noted regular reports of detention and torture of children under age 13 in government detention facilities. Officials reportedly targeted and tortured children because of their familial relations, or assumed relationships, with political dissidents, members of the Free Syrian Army (FSA), and activist groups. The UN special representative for children and armed conflict reported that child detainees, largely boys, including those as young as age 14, suffered similar or identical methods of torture practiced on adults, including electric shock, beatings, stress positions, threats, and acts of sexual assault. According to witnesses a number of children continued to be held to compel parents and other relatives associated with opposition fighters to surrender to authorities.

The use of psychological torture by the regime also reportedly increased; one common practice was detention of victims overnight in cells with corpses of previous victims. The SNHR reported that psychological torture methods included forcing prisoners to witness the rape of other prisoners, threatening the rape of family members (in particular female family members), forced undressing, and insulting prisoners' beliefs.

Although authorities held fewer women and girls in detention than men, the SNHR estimated the number of female detainees in regime prisons to be at least 6,500. The SNHR estimated government forces were responsible for at least 7,500 incidents of sexual abuse during the year, including 850 inside detention centers and 400 against girls younger than age 18. The SNHR reported in November that authorities transferred many women to Adra prison. The SNHR documented 282

female political prisoners in Adra as of September but estimated the actual number could be double that figure. They also noted the June presidential pardon included only 28 prisoners. Of the 282 political prisoners, 14 were pregnant, eight gave birth inside the prison, 43 were jailed in solitary confinement for more than three days, seven were judged by the terrorism court, two died because of detention conditions, 58 were beaten and tortured in Adra, and 82 contracted permanent diseases. A June HRW report documented interviews with 10 female detainees in regime prisons. Two of the women reported regime officials raped them while in custody. One woman, “Amal,” reported she was raped on two occasions, first at the Tartus Military Intelligence Branch in October 2012, and again by officers at the Damascus Military Intelligence Branch 235 in November 2012. An SNHR report included testimony from a woman arrested and interrogated three times. The report--which documented severe abuse, including electric shock, beatings, and threats made against her family--noted that the victim also witnessed the rape of another female prisoner. Another former female prisoner interviewed by the SNHR during the year related that authorities raped her multiple times and that this abuse was common among other imprisoned women.

Some women left detention facilities pregnant after security forces raped them. On September 13, a pregnant 25-year-old woman committed suicide after her release from a regime detention facility in Aleppo, where she was gang-raped daily for several months and impregnated as a result, according to the SNHR.

Reports from multiple UN and NGO sources indicated the number of cases of rape and other extreme sexual violence against women during the year ranged from the high hundreds to thousands. According to the COI, the government and affiliated militias systematically perpetrated rape and other inhuman attacks against civilian populations in Dayr al-Zawr, Dara’a, Hama, Damascus, and Tartus provinces. Detention centers were the most common location for abuse. In several interviews with the COI, former female prisoners reported being forced to perform oral sex on interrogators and witnessing the rape of other inmates. One woman interviewed by the SNHR reported that three different men consecutively raped her while she was in detention. Attacks also occurred during military raids and at checkpoints. These cases of mostly government-sponsored violence included instances in which multiple attackers, usually soldiers and shabiha, reportedly gang-raped women in their homes, sometimes in front of family members. Such incidents reportedly took place in private homes or in situations of formal and informal custody. The COI also reported instances of rape and sexual assault against men and boys.

There were widespread reports that ISIL also engaged in abuses and torture. According to the COI, ISIL increased use of torture, abuse, and cruel and inhuman treatment, particularly in Raqqa, including in public squares. In May, ISIL publicly amputated the hand of a man accused of stealing. Forms of corporal punishment, such as amputations and lashings, were reportedly common in ISIL-held territory. ISIL frequently carried out punishments publicly and forced residents to witness these acts. According to the COI, ISIL authorities forced children to watch executions and amputations. The COI and media also reported that ISIL members tied men to a board or crucifix and displayed them publicly before beatings and lashings in Aleppo and Raqqa. ISIL committed abuses systematically against captured FSA and Kurdish People's Protection Units fighters. ISIL fighters beat and killed those held in its detention centers in Raqqa and Aleppo governorates during interrogations, including with cables. ISIL also beat persons because of their dress; several sources reported ISIL members beat women for not covering their faces. ISIL justified its use of corporal punishment--including amputations and lashings--as religious law.

The COI also reported opposition groups tortured individuals in detention facilities operated by the Judicial Council and the Sharia Board in Aleppo. The COI noted that some opposition groups subjected detainees suspected of being members of proregime militias to severe physical or mental pain and suffering to obtain information or confessions, or as punishment or coercion. The report also noted instances in which extremist groups Jabhat al-Nusra and ISIL arbitrarily detained and tortured individuals traveling through checkpoints along the country's northern border. ISIL fighters assaulted residents and reportedly beat one so badly on the soles of his feet that he was unable to walk for days.

The COI further reported that Kurdish militia forces, including forces linked to the PYD, beat antigovernment protesters and detained them, as well as those suspected of being associated with other armed opposition groups. The SNHR reported Kurdish forces detained 580 persons during the year in poor conditions, with some instances of torture documented.

Prison and Detention Center Conditions

Prison and detention center conditions remained harsh and generally life threatening. The government prohibited independent monitoring of prison or detention center conditions. Reports of mistreatment and abuse of prisoners were common. The COI reported observers most often cited detention centers and

prisons as locations for sexual violence and that authorities used the threat of rape as a tool to coerce confessions.

Physical Conditions: The SNHR reported that since 2011, the government detained more than 215,000 individuals, including 9,000 under age 18 and 4,530 women. According to the COI, government detention facilities lacked food, water, space, hygiene, and medical care. Poor conditions were so consistent that the COI concluded they reflected state policy.

Conditions in detention centers operated by various opposition groups were not well known, but the COI and local NGOs transmitted accounts of arbitrary detention, torture, inhuman treatment, and abuse.

Human rights groups reported intelligence services operated at least 88 separate detention centers. Reports from multiple international NGO sources suggested there were also many informal detention sites and the government held thousands of prisoners in civilian infrastructure, such as schools, stadiums, and in unknown locations. The SNHR reported on eyewitness interviews from the Der Shmiel camp in Hama, in which survivors described torture, denial of food, and seeing disfigured dead bodies. The SNHR estimated there were 2,500 detainees in the camp, including 250 children and 400 women. Prior to the 2011 protests, the government usually held pretrial detainees separately from convicted prisoners; however, authorities commonly held juveniles, adults, pretrial detainees, and convicted prisoners together in inadequate spaces during the year. The COI reported children as young as age eight were imprisoned with adults.

Authorities used converted military bases, schools, hospitals, and other large, public facilities as prisons in numerous cities. Activists asserted the regime also housed arrested protesters in factories and vacant warehouses that were overcrowded and lacked adequate bathroom facilities. In some cases authorities transferred detainees from these unofficial holding areas to facilities of the intelligence services. According to local and international NGOs, the government held prisoners and detainees in severely cramped quarters with little or no access to restroom facilities, hygiene, medical supplies, or adequate food. According to four detainees interviewed by HRW, authorities used small cells intended for solitary confinement to house as many as five prisoners. Due to the extremely crowded nature of these cells, only two prisoners could sleep at once, while the others remained standing. Detention conditions at security and intelligence service facilities continued to be the harshest, especially for political or national security prisoners. Facilities lacked proper ventilation, lighting, access to potable water or

adequate food, medical staff and equipment, and sufficient sleeping quarters. According to the COI, most former detainees reported inadequate food, with some losing half their body weight while detained.

The prevalence of death in prisons and detention centers remained high. An SNHR report found rampant disease, including 30 prisoners who died of tuberculosis out of 300 who contracted it in an Aleppo prison due to the government's intentional deprivation of medicine. Another SNHR report on the Branch 215 Military Intelligence Detention Facility in Damascus claimed infection and disease were common among prisoners as a result of unsanitary conditions and withholding access to medical care and medication. Local NGOs and medical professionals also reported authorities denied medical care to prisoners with pre-existing health needs, such as diabetes, asthma, and breast cancer, and denied pregnant women any medical care. Authorities retaliated against prisoners who requested attention for the sick. Released prisoners commonly reported sickness and injury resulting from such conditions. Information on conditions and care for prisoners with disabilities was unavailable.

Facilities administered by the Ministry of Justice were less severe.

Prison authorities used violence to control inmates, including tear gas and live ammunition. The regime also continued targeting prisons in its attacks.

According to an August report by the Office of the UN High Commissioner for Human Rights (OHCHR) and numerous press reports, the Aleppo Central Prison was at the center of a battle between government forces and armed opposition groups. The prison reportedly held 2,500 inmates, including 75 women, four of whom were incarcerated with their children, and an unknown number of juveniles. From mid-2013 until May, the armed rebel group Ahrar al-Sham, as well as Jabhat al-Nusra and other armed groups, besieged the prison, resulting in severe conditions and abuse for inmates. Between December 2013 and March, at least 30 individuals reportedly died of starvation. In May government forces retook the prison. The OHCHR reported that on May 6, government forces killed a political detainee who completed his sentence but was still imprisoned; they reportedly fired into his cell in celebration of government troops advancing toward the prison. Authorities reportedly left the body of the victim in a cell for two days before removing it. Authorities reportedly held approximately 150 prisoners in this particular prison in connection with antigovernment protests. In a reply letter to the OHCHR, the regime stated it released 937 inmates during the siege. As of January it claimed it had released 1,105 inmates and transferred another 363

prisoners to other places of detention. The OHCHR reported that the whereabouts of a number of prisoners and detainees remained unknown, which could amount to enforced disappearance. The government stated 528 inmates and 57 prison guards died from terrorist attacks, starvation, or disease during the siege and that fighting injured 225 inmates and 100 prison guards.

According to the COI, conditions in detention centers run by ISIL violated international law. Detainees in such centers in Raqqa reported being held in crowded, insect-infested cells with neither light nor bedding. ISIL denied prisoners access to adequate food or legal counsel and prevented communication outside the facility.

Administration: The government made no serious attempts to improve recordkeeping or offer alternatives to incarceration for nonviolent offenders. There were no credible mechanisms or avenues for prisoners to complain or submit grievances, and authorities routinely failed to investigate allegations or document complaints or grievances. Activists reported there was no ombudsman to serve on behalf of prisoners and detainees. Prisoners charged with crimes had limited access to visitors. The regime continued to detain thousands of prisoners without charge incommunicado in unknown locations.

In areas where government control became weak or nonexistent, such as in parts of the north, south, and east, localized corrections structures emerged. In such scenarios there were varied reports of control and oversight, including the administration of detention facilities by civilian and religious leaders.

Independent Monitoring: The government prohibited most independent monitoring of prison or detention center conditions, and diplomatic and consular officials had less access than in previous years. Some opposition forces invited the COI to visit localized facilities they administered and allowed some international human rights groups, including HRW, to visit. The International Committee of the Red Cross continued to negotiate with all parties to gain access to detention centers across the country.

d. Arbitrary Arrest or Detention

The constitution prohibits arbitrary arrest and detention, although a 2011 decree allows the government to detain suspects for up to 60 days without charge if suspected of “terrorism” and other related offenses. Arbitrary arrests increased, according to local news sources, and several human rights organizations reported

detentions in the tens of thousands. According to the COI, reports of arbitrary arrests and enforced disappearances--mainly of men and boys above age 10--increased, and many of the arrests occurred at checkpoints operated by the army, security services, or the paramilitary National Defense Force (NDF).

HRW continued to report the regime used the 2012 Counterterrorism Law to arrest and convict nonviolent activists on charges of aiding terrorists in trials that violated basic due process rights. Although authorities brought charges under the guise of countering violent militancy, allegations included peaceful acts such as distributing humanitarian aid, participating in protests, and documenting human rights abuses.

Role of the Police and Security Apparatus

The government's multiple security branches traditionally operated autonomously with no defined boundaries between their areas of jurisdiction. Military Intelligence and Air Force Intelligence report to the Ministry of Defense, the Political Security Directorate reports to the Ministry of Interior, and the General Intelligence Directorate reports directly to the Office of the President. The Interior Ministry controls the four separate divisions of police forces: emergency police, traffic police, neighborhood police, and riot police.

Regime-affiliated shabiha forces organized and in 2013 rebranded themselves as the NDF. These groups engaged in armed conflict and arrested, detained, and tortured those suspected of supporting the opposition. Although the NDF integrated with regime-affiliated forces, there also were other proregime militias outside the NDF.

Impunity continued to be a widespread problem. The General Command of the Army and Armed Forces can issue arrest warrants for crimes committed by military officers, members of the internal security forces, or customs police during their normal duties; such cases must be tried in military courts. There were no known prosecutions or convictions of police and security force personnel for abuse or corruption, however, and security forces operated independently and generally outside the control of the legal system. Nevertheless, the government dismissed two security officers, presumably for incompetence, after an October 2 bombing by unknown actors at a predominantly Alawite school in Homs resulted in the deaths of 50 persons, including 48 children, most under age 12. There were no reported government actions to reform the security forces or police.

Opposition forces established irregularly constituted courts and detention facilities in areas under their control, which varied greatly in organization and adherence to judicial norms. Some groups upheld the penal code, others followed a 1996 draft Arab League Unified Penal Code based on sharia (Islamic law), while others implemented a mix of customary law and sharia. The experience, expertise, and credentialing of opposition judges and religious scholars also varied widely and were often subject to the orders of dominant armed militias in the area.

ISIL claimed it based administration of justice in territory it controlled on religious law. ISIL authorized police forces known as Hisbah to administer summary punishment for violations of ISIL's morality code. Men faced beatings for smoking, possessing alcohol, listening to music, trading during prayer times, and not fasting during Ramadan. Authorities punished others for accompanying "improperly dressed" female relatives.

Arrest Procedures and Treatment of Detainees

The law generally requires a warrant for arrest in criminal cases, but police often cited emergency or national security justifications for acting without a warrant, permitted under the law. Police usually brought arrested individuals to a police station for processing and detention until a trial date was set. The law stipulates that the length of time a person may be held without charge is limited to 60 days, but according to various NGOs, activists, and former detainees, police held many individuals for longer periods or indefinitely. Civil and criminal defendants have the right to bail hearings and possible release from detention on their own recognizance. The legal system inconsistently applied this right, particularly with pretrial detainees. At the initial court hearing, which can be months or years after the arrest, the accused may retain an attorney at personal expense or be assigned a court-appointed attorney, although lawyers are not ensured access to their clients before trial. According to local human rights organizations, denial of access to a lawyer was common. The law provides for prompt access to family members, but NGOs and families reported inconsistent application of the law, with some families waiting as long as one year to see relatives.

In cases involving political or national security offenses, authorities often made arrests in secret with cases assigned in an apparently arbitrary manner to military, security, or criminal courts. This practice was common. The government detained suspects incommunicado for prolonged periods without charge or trial and denied them the right to a judicial determination of their pretrial detention. In most cases authorities did not inform detainees of charges against them until their

arraignment, often months after their arrest. Security detainees did not have access to lawyers before or during questioning, or throughout preparation and presentation of their defense. The number of suspects accused of political and national security offenses increased over previous years.

The government often failed to notify foreign governments when it arrested or detained their citizens or after it released or deported them, especially when the case involved political charges. The government also failed to provide consular access to foreign citizens known to be in its prisons and, on numerous occasions, claimed these individuals were not in their custody or even in the country.

Arbitrary Arrest: Security forces continued their previous practices and increased arbitrary arrests, but detainees had no legal redress. Reports continued of security services arresting relatives of wanted persons to pressure individuals to surrender. Police rarely issued or presented warrants or court orders before an arrest. The security branches secretly ordered many detentions. Freedom House reported the government continued to respond to opposition protests in government-held areas with gunfire, mass arrests, and torture. In areas under government control, security forces engaged in arbitrary arrests. For example, the COI reported mass arrests of men of fighting age in the cities of Yabroud, following its seizure by government forces in March; Assal al-Ward, following the April truce; and Homs, following the May truce. The COI also noted that authorities arbitrarily arrested men and boys over age 12 at some checkpoints. Arbitrary and false arrests were common, and detainees had no legal redress. Often authorities cited no reason for arresting civilians.

Checkpoints operated by the government were another commonly reported location for arbitrary detention, sometimes resulting in transfer to a long-term detention facility or disappearance. In Um Walad, Dara'a, government military and security forces arrested men at checkpoints solely for being of military age. According to the COI, there continued to be frequent accounts of enforced disappearances following arrest at checkpoints. Authorities subjected both men and women to arbitrary arrest at checkpoints. In separate incidents in April, authorities arrested two women at the al-Jorjanieh checkpoint.

Activists and international humanitarian organizations stated government forces continued to conduct security raids in response to antigovernment protests throughout urban areas.

Multiple reports from local and international NGOs stated the government prevented the majority of those detained from contacting their relatives or obtaining a lawyer. When authorities occasionally released detainees, it was often without any formal judicial procedures. Hundreds of detainees interviewed by human rights groups were arrested, detained, questioned, and released after months of detention without seeing a judge or being sentenced.

Pretrial Detention: Lengthy pretrial detention remained a serious problem. Authorities held incommunicado for years many detainees before bringing them to trial. A shortage of available courts and lack of legal provisions for speedy trial or plea bargaining also contributed to lengthy pretrial detentions. There were numerous instances in which the length of detention exceeded the sentence for the crime.

Amnesty: On June 9, Bashar Asad issued Legislative Decree 22, an amnesty freeing an unspecified number of prisoners. Its conditions generally applied to criminal rather than politically motivated actions. Critics dismissed the gesture as meaningless in view of the thousands of political prisoners who remained in captivity and claimed the amnesty, as implemented, was extremely limited in scale. The government subsequently claimed it released 2,445 prisoners. According to a July HRW report, the government released 1,300 prisoners, many of whom were common criminals; of a group of 34 well-known human rights activists, the government released only Yara Faris.

The SNHR estimated the government released 632 detainees under this amnesty, 384 of whom were held under criminal charges. The June amnesty followed an April 2013 amnesty that reduced the prison sentences of an unknown number of detainees. As with the previous amnesty, several NGOs and activists criticized the decree as extremely limited and applying mostly to common criminals while excluding those charged with political crimes.

e. Denial of Fair Public Trial

The constitution provides for an independent judiciary, but courts were regularly subject to political influence, and outcomes of cases with political context appeared predetermined. An estimated 95 percent of regime judges were Baathists or closely aligned with the Baath Party.

Trial Procedures

The law presumes defendants innocent. Defendants have the right to prompt, detailed notification of the charges against them with interpretation as necessary, although this right was not verifiably enforced, and a number of detainees' families mentioned that the accused were unaware of the charges facing them. Trials are public, except for those involving juveniles or sexual offenses. There are no juries. Defendants before civil and criminal courts are legally entitled to representation of their choice; the courts appoint lawyers for indigents. Defendants and their attorneys nominally have access to government-held evidence relevant to their cases. Human rights lawyers noted, however, that in some politically charged cases, the government provided prosecution case files to defense lawyers that did not include any evidence. Defendants can present evidence and confront their accusers. Defendants cannot legally be compelled to testify or confess guilt, but family members and NGOs reported that torture, or intimidation from judges and prosecutors, sometimes elicited false confessions. The convicted may appeal verdicts to a provincial appeals court and ultimately to the Court of Cassation.

Not all citizens enjoyed these rights equally, in part because elements of family and criminal law are based on interpretations of religious law and discriminate against women. Some personal status laws applied sharia law regardless of the religion of those involved.

Additionally news media and NGO reports suggested the government denied some, and in certain cases all, of these protections to those accused of political crimes or violence against the regime. Sentences for persons accused of antigovernment activity tended to be harsh, with violent offenders and nonviolent offenders receiving similar punishments. According to the SNHR, during the year the Counterterrorism Court reviewed 6,500 cases, sentenced approximately 25 persons to death, and released 3,100; the majority of those tried received five- to 20-year prison sentences. The government did not permit defendants in the Counterterrorism Court to have legal representation, although activists reported individuals charged under counterterrorism law could retain attorneys for the purpose of moving their trial date.

In opposition-controlled areas, legal or trial procedures varied by locale. Local human rights organizations reported local governing structures assumed these responsibilities. There were reports from HRW that civilians administered these processes employing customary sharia laws in some cases and national laws in others. Sentencing by opposition sharia councils sometimes resulted in public executions, without an appeals process or visits by family members.

According to local NGOs, the opposition-run sharia councils continued to discriminate against women, not allowing them to serve as judges or lawyers, or to visit detainees. In the territory it controlled, ISIL appointed judges with unknown credentials based on an unknown selection process. ISIL administered courts according to its interpretation of religious law. According to the COI, authorities in ISIL-run prisons refused detainees access to legal representation and denied them due process rights. The COI also concluded that ISIL carried out executions without affording accused persons adequate due process rights.

The Aleppo Sharia Commission, associated with Jabhat al-Nusra and other armed opposition forces, operated a court system with courts on civil, criminal, military, and civilian affairs. These courts reportedly followed the Unified Arab League draft code rather than the country's legal code. In Dara'a, opposition forces formed the Unified Judicial Sharia Commission, also known as the Gharz Court, which has courts on criminal, transactions, and civil affairs.

Political Prisoners and Detainees

The government detained critics and charged them with a wide range of political crimes, including terrorism. The number of political prisoners and detainees, both citizens and foreigners, was difficult to determine due to a lack of government information and because different security services maintained their own incarceration facilities that held significant numbers of such detainees. Authorities continued to refuse to divulge information regarding numbers or names of persons detained on political or security-related charges. The Violations Documentation Center reported more than 37,000 political prisoners were arrested. The government held political detainees for extended periods both in regular jails and in at least 88 known detention centers run by security forces. Authorities generally held them without charge or trial, and the government did not inform their families. If tried, political detainees appeared in criminal courts for such charges. The government did not grant international organizations access to political prisoners.

Prison conditions for political or national security prisoners, especially accused opposition members, continued to be much worse than those for common criminals. According to local NGOs, authorities deliberately placed political prisoners in crowded cells with convicted and alleged felons and subjected them to verbal and physical threats and abuse. Political prisoners also reported they often slept on the ground due to lack of beds and faced frequent searches. According to reports from families, authorities refused many political prisoners access to family and counsel. Some former detainees and human rights observers reported the

government denied political prisoners access to reading materials, including the Quran, and prohibited them from praying in their cells.

Many prominent civilian activists and journalists detained or disappeared following the 2011 protests remained in detention. In 2012 officers from Air Force Intelligence raided the Damascus offices of the Syrian Center for Media and Freedom of Expression, a partner organization of Reporters Without Borders, and arrested Mazen Darwish, the center's president, and 16 of his coworkers. Officials initially detained them incommunicado without charge and denied them access to legal counsel, family members, and medical services. Former detainees held in detention with Darwish, whom AI considered a prisoner of conscience, reported authorities tortured them with whippings, severe beatings, electric shocks, and threats of rape and bodily mutilation. In 2012 authorities moved five of the detainees to Adra prison and charged them with "publicizing terrorist acts," including monitoring online news, publishing reports on human rights and the media, documenting deaths and detentions, and accepting funds from international organizations. The federal Counterterrorism Court announced the date of January 20, 2015, for the trial of Mazen Darwish and four of his colleagues, postponed from a previously announced date in July. If convicted the accused faced 15 years' imprisonment. During the year Darwish was awarded the PEN Pinter International Writer of Courage award. Supporters in London released a letter from Darwish in October, which highlighted his continued imprisonment and abuses by multiple parties, despite his name being included in the regime's "general amnesty" measure announced by state television and media on June 9.

HRW reported courts continued to detain activists under the Counterterrorism Law, implemented following the lifting of the Emergency Law in 2011. The government established a Counterterrorism Court under the Ministry of Justice to apply the law. Authorities held some detainees under this law at Adra Central prison in Damascus pending trial. The amnesties Bashar Asad enacted in 2013 and in June included some detainees held under counterterrorism charges, but NGOs and activists reported the government released very few such individuals under the amnesties, and of those few released, authorities later re-arrested many of them.

Local NGOs reported ISIL detained and harassed domestic human rights activists, humanitarian aid workers, and religious figures. The COI reported that in Raqqa, ISIL detained hundreds of prisoners, including women and community activists, who opposed it. HRW reported ISIL abused 150 young men it captured near Kobane in late May as the students were returning home after taking school exams

in the city of Aleppo. HRW reported boys who escaped, or were released, described frequent abuse and beatings with hoses and electric cables.

Civil Judicial Procedures and Remedies

Government civil remedies for human rights violations were functionally nonexistent. In areas under their control, opposition groups had not organized consistent civil judicial procedures. ISIL had no known civil judicial mechanisms in the territories it controlled.

Property Restitution

Security forces routinely seized detainees' property and personal items. With the onset of civil unrest, authorities increased confiscation of personal telephones, computers, and electronics. Security forces did not catalog these items in accordance with the law, and although detained individuals had the right to retrieve their confiscated belongings after release, authorities often did not return the property. According to media reports and activists, government forces also seized property left by refugees or the internally displaced. According to humanitarian aid workers, ISIL also seized property from international and local aid workers at checkpoints that ISIL administered throughout the country.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The law prohibits such actions, but they occurred routinely. Police frequently bypassed search warrant requirements in criminal cases by citing security reasons or emergency grounds for entry into private property. Random home raids occurred in large cities and towns of most governorates where the government maintained a presence, usually following large antigovernment protests or opposition attacks against government targets.

The government continued to open mail addressed to both citizens and foreign residents and routinely monitored internet communications, including e-mail (see section 2.a.).

The government continued to bar membership in some political organizations, including Islamist parties, and often arrested their members (see section 3).

According to the media and activists, the regime seized the property and assets of opposition figures, including those who participated in the January and February

Geneva II negotiations between the regime and opposition elements, and arrested members of their families.

g. Use of Excessive Force and Other Abuses in Internal Conflicts

The government, opposition groups, and ISIL all escalated their use of force during the year. The OHCHR reported more than 200,000 persons had been killed since the start of the 2011 protests.

Killings: Regime killings and use of lethal tactics increased during the year. The government reportedly targeted members of opposition groups and the communities presumed to be sheltering them, human rights organizations, physicians, journalists, activists, artists, and pro-opposition scholars. The government also escalated its use of indiscriminate force, killing a high percentage of civilians, including children, in attacks on opposition targets. Such attacks resulted in the deaths of 32,507 persons, including 3,629 children; 131 medical professionals also were killed. The SNHR reported 1,993 persons died as a result of torture in government facilities, including 11 children and nine women. Additionally 152 children died due to insufficient food and medical supplies.

The regime continued its use of helicopters and airplanes to conduct aerial bombardment and shelling. In February the UN Security Council called on the regime to end the indiscriminate use of barrel bombs. HRW reported that between February and July, the regime used barrel bombs 650 times against Aleppo. According to the Syrian Violations Documentation Center, aerial bombings in Aleppo Governorate killed 1,655 civilians between February 22 and July 22.

According to a June 18 media report, a barrel bomb attack killed 20 persons, mostly women and children, in a refugee camp near the village of Shajra. HRW reported another June aerial bombing killed 50 civilians in Aleppo, with an additional 18 killed in other attacks on the same day.

On November 25, the regime carried out nine airstrikes in the city of Raqqa, resulting in 73 deaths, including seven children and three women, according to the SNHR.

The SNHR reported security forces used chemical weapons at least 26 times since the beginning of the year, including nine shells containing chlorine gas used against the village of Kafr Zeita between April 11 and May 22. An HRW report released in September documented persistent use of cluster munitions, identifying

at least 249 instances of their deployment since mid-2012. According to the SNHR, the government used cluster munitions 83 times between January and September, killing 49 and injuring 450. Throughout the country progovernment snipers targeted individuals in the streets, including unarmed civilians as well as those affiliated with the opposition. In an October report, the SNHR documented the deaths of 5,307 persons, including 518 children and 641 women, from sniper fire by regime forces and associated militias since the start of the conflict. The SNHR noted snipers used religious sites, including minarets, to gain vantage points. The SNHR noted ISIL killed eight persons with sniper fire during the year.

Government forces also used rape as a war tactic, specifically during house raids and at checkpoints.

According to the COI, opposition groups also committed violations and abuses, although less so than government forces and affiliated militia. In 2012 several opposition commanders and brigades drafted and endorsed various codes of conduct in an effort to curb violations and killings; however, adherence to such standards was uneven.

The Organization for the Prohibition of Chemical Weapons (OPCW) established a fact-finding mission that documented several instances, based on witness accounts and other evidence, of attacks using chlorine as a chemical weapon in April and May. Invariably, witnesses connected the release of toxic chemicals to helicopters flying overhead; only the regime used helicopters. Moreover, the mission noted alleged reports of similar chlorine attacks in August and September.

Progovernment militias, including Lebanese Hizballah, continued to carry out mass killings. According to the SNHR, Shiite militias perpetrated massacres in the Khnaser countryside in Aleppo. On February 22, a Shiite militia called the Abdulfadl al-Abbas forces took 26 young men from the cultural center building, accused them of being terrorists and “Yazidis,” lined them against a wall, and opened fire. The SNHR also reported witness testimony from a June 21 regime bombing in Rasm An-Nafl village, Aleppo, in which 192 civilians--including 27 children and 21 women--were killed. Activists and NGOs reported ISIL continued to engage in widespread and severe violations and abuses. In October the Syrian Observatory for Human Rights (SOHR) reported ISIL killed more than 650 persons in its offensive against Kobane near the Turkish border. ISIL attacks forced an estimated 150,000 residents of Kobane to flee, according to the SNHR. In October a video showed the Islamic Front shelling the primarily Shia villages of Nubl and Zahra.

According to the SNHR, ISIL killed a total of 3,557 persons during the year.

The Free Syrian Lawyers Association reported the discovery of mass graves in northeast Homs and the Hama countryside following ISIL's departure from the area. The association also reported the executions of more than 100 members of the Ahrar al-Sham militia following ISIL's capture of Raqqa City early in the year and the execution of dozens of members of Jabhat al-Nusra, in Shuheil, in Dayr al-Zawr, following its takeover by ISIL in the summer.

In May, ISIL detonated a bomb near the Syrian-Turkish border, killing 43 persons and injuring 80. According to the SOHR, fighting between ISIL and regime forces in the east killed more than 700 individuals during a 48-hour period in July.

The COI reported ISIL continued to target journalists systematically. In August, September, and October, ISIL decapitated foreign journalists and humanitarian aid workers and circulated video images of the beheadings on social media. In January, ISIL fighters raided the offices of several media organizations in Kafranbel, where they arrested journalists and confiscated equipment.

Opposition forces increased their killing of regime forces, suspected regime supporters, and minority communities through large-scale attacks and the use of snipers. According to the COI, opposition forces positioned military facilities and equipment in civilian areas.

The SNHR reported indiscriminate shelling by rebels of varying factions resulted in the deaths of 987 civilians during the year, including 288 children and 171 women.

On June 20, the Islamic Front detonated a truck bomb in the Hama countryside, killing four children and injuring 50.

Press reports and videos from Syria reported the deliberate killing by ISIL and opposition forces of unarmed prisoners, including regime soldiers. In some cases informal courts tried prisoners in an irregular fashion, such as facing a sharia council prior to execution, according to reports from international NGOs and the COI.

According to the COI, in February ISIL beheaded a 15-year-old boy. In April, ISIL executed seven men in Raqqa City, five less than age 18. In May a man

detained by the Islamic Front was later found shot and killed. According to press reports, in July ISIL decapitated at least 50 regime soldiers, placed their corpses on public display in downtown Raqqa, and mounted their heads on fence posts in the city's main square. In July, ISIL militants stoned to death two women in Raqqa Governorate and another woman in Hama, in October.

According to media reports, ISIL executed between 700 and 900 members of the Sheitaat tribe in Dayr al-Zawr during a two-week period in August. The SOHR also reported in August that ISIL beheaded three men in Dayr al-Zawr for resisting ISIL domination. Following ISIL's August seizure of the Syrian military base of Tabqa, in Raqqa Governorate, ISIL fighters executed between 100 and 200 regime soldiers, insulted members of the Alawite religious group, and recorded and circulated these actions on social media. On numerous occasions ISIL crucified captured civilians and soldiers. In October the SOHR reported ISIL crucified a 17-year-old boy. In June ISIL crucified eight captured opposition fighters in Aleppo Governorate.

In March a video released by Jabhat al-Nusra depicted the killing of two men accused of joining ISIL. In October, Jabhat al-Nusra executed a man in Dara'a. The same month the Islamic Front killed several men suspected of collaborating with the regime, according to the COI.

The United Nations reported several instances of violence, including killings of Palestinian refugees living in camps within the country.

The SNHR reported Kurdish militia forces killed 102 civilians during the year, including 42 persons in two villages in September alone.

Abductions: The COI reported government forces and affiliated militia perpetrated forced disappearances at checkpoints throughout the country, including in Shin, Homs province; Nawa, Dara'a province; and Qatana, Damascus. In some cases, according to the United Nations, government officials refused to disclose the whereabouts of young men arrested. In most cases relatives did not attempt to determine the fate of those arrested due to fear of reprisal.

The COI reported that a dramatic rise in hostage taking, which was often sectarian in nature, triggered reprisals and fueled intercommunal tension. Antigovernment armed groups abducted civilians and members of regime forces to enable prisoner exchanges and for ransom money to purchase weapons.

Kidnappings markedly increased in Aleppo and northern areas outside of government control. In August gunmen linked to Jabhat al-Nusra abducted 43 Fijian peacekeepers deployed to the Golan Heights as part of the UN Disengagement Observer Force monitoring mission and attempted to leverage the hostages to demand several changes in UN policy. Jabhat al-Nusra later released the detainees unharmed.

Extremist oppositionist groups conducted kidnappings, particularly in northern areas, targeting religious leaders, aid workers, suspected regime affiliates, journalists, and activists. For example, in January unknown gunmen in the north abducted five aid workers from the organization Doctors Without Borders. According to HRW, in May ISIL abducted 153 children returning to the town of Kobane after taking year-end exams in Aleppo. In October the Franciscan Custody of the Holy Land reported Jabhat al-Nusra seized Hanna Jallouf, a Franciscan priest, and approximately 20 of his parishioners, whose whereabouts remained unknown.

Some foreign abductees were killed. ISIL claimed responsibility for the killing of journalists James Foley and Steven Sotloff, aid worker Abdul Rahman “Peter” Kassig, and David Haines and Alan Henning.

Physical Abuse, Punishment, and Torture: The government and its affiliated militias consistently engaged in physical abuse, punishment, and torture of both opposition members and civilians. Government agents targeted individuals with previous ties to foreign governments that favored the opposition; family members and associates of such individuals also were targeted. Government officials abused prisoners and detainees, as well as injured and sick persons, and raped women and men as a tactic of war. For example, reports of government-sponsored sexual violence included rape of women at checkpoints, transfer of women to jails to be raped in front of detained husbands (sometimes followed by attacks on detained husbands), incidents of mass rape, and the gang rape of women by security forces. Additionally, according to the COI, the “Caesar photographs” smuggled out of the country early in the year by a former regime photographer documented the torture and severe malnourishment of more than 11,000 deceased detainees between 2011 and 2013.

The COI also reported cases of opposition forces engaging in torture. In detention facilities run by the Judicial Council and the Sharia Board in Aleppo, opposition forces subjected detainees suspected of being shabiha proregime militia to severe physical or mental pain to obtain information or confessions. According to COI

and media reports, ISIL subjected western hostages to waterboarding, lashing, and other forms of corporal punishment, such as amputation, in ISIL-held areas. Activists reported that in July ISIL tied a 14-year-old boy to a cross and left him exposed to the sun for several hours. ISIL carried out punishments in public, forcing crowds including children, to gather and watch. The SNHR reported ISIL tortured at least 20 persons to death in detention throughout the year.

Child Soldiers: Several sources documented the continued recruitment and use of children in combat. The COI reported progovernment militias enlisted children as young as age 13. The COI reported the regime sometimes paid children between ages six and 13 to be informants, exposing them to danger. Observers regularly saw boys between ages 12 and 14 whom the Popular Committees in Nubul and Zahra and in the Nairab camp in Aleppo tasked with surveillance.

HRW reported opposition forces used children under age 18 as fighters. According to HRW numerous groups and factions failed to prevent the enlistment of minors, while ISIL and Jabhat al-Nusra actively recruited children as fighters. According to the COI, Islamic Front-affiliated and other armed groups “recruited, trained, and used children in active combat roles.” Jaish al-Mujahideen provided a 15-year-old with weapons training and also enlisted minors younger than 18, according to the COI, which also reported an ISIL camp near Aleppo trained children as young as age 14. In Raqqa, according to the COI and press reports, ISIL recruited and enlisted children as young as age 10. HRW noted that Ahrar al-Sham, Jabhat al-Nusra, and Kurdish People’s Protection Units militias enlisted fighters less under 18.

The COI report also noted that some FSA units, such as in Dayr al-Zawr Governorate, rejected the use of child soldiers. In March the National Coalition of Syrian Revolutionary and Opposition Forces announced it implemented training to eliminate the recruitment of child soldiers. In December 2013 the General Command of the YPG, the armed wing of the PYD, issued an order prohibiting enlistment of children under 18. The COI report confirmed that the YPG demobilized child soldiers from its ranks and began monitoring adherence to its commitment to eliminate children from fighting. Nevertheless, some local groups reported YPG and Asayish forces abused and forcibly recruited children.

Also, see the Department of State’s annual *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Other Conflict-related Abuses: The government and opposition forces both impeded the flow of humanitarian assistance. An estimated 4.7 million persons remained in areas difficult to reach, with 212,000 located in besieged areas impossible to access. The government deliberately restricted the passage of relief supplies and access by impartial humanitarian agencies. Acute restrictions on food and medicine caused malnutrition-related deaths, including outbreaks of hepatitis, cutaneous leishmaniasis, typhoid, cholera, and dysentery. For example, the regime siege of Moadamiya al-Sham, near Damascus, resulted in severe malnutrition and deaths, particularly of children. In May opposition forces agreed to withdraw from Homs after a sustained period during which government security forces blocked all aid, food, medicine, and goods as part of a “starve or surrender” campaign, according to residents. In addition to Homs, the COI reported regime sieges in Damascus, Dara’a, Qunaytrah, and Dayr al-Zawr that “appeared to be calculated to render the conditions of life unbearable and forcing civilians to flee.” In April, *The Guardian* reported the regime subjected residents of the Yarmouk Palestinian refugee camp to an 18-month siege that left 18,000 civilians at severe risk of starvation with extremely limited access to medical care and clean water. The regime refused the UN Relief and Works Agency for Palestine Refugees in the Near East (UNRWA) and NGOs entry to the camp to provide humanitarian aid to Yarmouk residents. In March, AI reported at least 128 residents of Yarmouk died of starvation during the siege. The regime also failed to provide visas to international humanitarian workers and created unnecessary bureaucratic obstacles to relief delivery.

The COI and media reported opposition groups also surrounded towns and limited access to supplies such as food in Afrin, Nubl, Zahra, and other locations. Opposition forces also reportedly denied supplies to the central prison in Aleppo until the government released certain prisoners. The COI found that the regime detained many Red Crescent volunteers and medical staff on the pretext of “having supported terrorists.” According to the COI, the Islamic Front and Jaish al-Mujahideen stopped or limited electricity and water to several neighborhoods in Aleppo. The COI also reported that between May 5 and May 14, Jabhat al-Nusra deliberately severed electricity and water to parts of Aleppo. The Islamic Front stopped access to the primarily Shia villages of Nubl and Zahra and halted the passage of civilians and goods in and out of the villages.

The regime and ISIL targeted aid providers systematically and severely restricted humanitarian access to territories under their respective control. In late October the UN secretary-general reported armed groups expelled humanitarian workers from areas they held and that 27 UN staff members were detained or missing,

including 24 UNRWA staff members. The secretary-general indicated the total number of humanitarian workers killed since 2011 was 66, including 17 UN staff members, 38 Syrian Arab Red Crescent (SARC) staff members and volunteers, seven Palestine Red Crescent Society volunteers and staff members, and four staff members of international NGOs.

Activists reported aid workers in ISIL-controlled territory were at high risk of abduction or violence. In October the United Nations reported ISIL continued to block its employees from providing humanitarian assistance in territory ISIL controlled.

Government forces, ISIL, and opposition forces attacked schools, hospitals, religious establishments, and bakeries. According to the SNHR, the government destroyed 850,000 buildings between 2011 and September and was responsible for damaging a total of 2.5 million structures. On February 28, while withdrawing from Azaz, ISIL destroyed the al-Faisal flourmill in northern Aleppo, severely restricting the availability of flour in the region. According to the SNHR, 45 percent of the country's hospitals were not functioning due to government shelling and looting. The World Health Organization reported the conflict negatively affected 60 percent of all hospitals. In many opposition-held areas, even fewer hospitals were functional. According to the SNHR, more than 85 percent of the hospitals in Raqqa were destroyed or out of service, as well as at least 75 percent of the hospitals in Dayr al-Zawr, Rif Damascus, and Homs governorates.

Observers and international aid organizations reported the government specifically targeted health-care workers, ambulances, and patients, in addition to restricting access to medical facilities and services to civilians and prisoners. The COI also reported government sniper fire and military assaults on medical facilities intentionally targeted the sick and injured, as well as pregnant women and persons with disabilities. The government deliberately obstructed the efforts of the sick and injured to obtain help, and many such individuals elected not to seek medical assistance in hospitals due to fear of arrest, detention, torture, or death. Government forces also targeted medical professionals for arrest. According to the Violations Documentation Center, the government had imprisoned 469 health workers as of mid-September. A March report by HRW noted that violence against and detention of health-care workers remained pervasive. The COI reported a documented pattern of ISIL detaining physicians and other medical workers. Physicians for Human Rights reported 195 attacks on 155 separate medical facilities between March 2011 and the end of August, with 560 medical personnel killed since the beginning of the conflict; government forces were

responsible for 90 percent of the attacks. According to a December SNHR report, government forces killed 131 medical professionals during the year. The governorates of Rif Damascus and Aleppo had the highest numbers of attacks on medical facilities, sustaining 35 attacks each. In Rif Damascus, 78 medical personnel were killed; 77 were killed in Homs. According to the SNHR, on February 7, government forces launched a missile into a medical clinic in Aleppo, killing two patients and injuring 16 persons, including eight staff. The attack forced the facility to close, leaving that area of Aleppo without a functioning hospital.

Government and opposition forces reportedly used civilians, including women and children, to shield combatants.

According to the United Nations, by year's end there were more than 7.6 million IDPs, due largely to conflict-related destruction of property, regime targeting of local populations, and violence. The figures on the IDP population varied widely, since many areas were inaccessible; actual figures may have been higher. The government did not provide sustainable access for services to the IDP population and did not offer IDPs assistance or protection (see section 2.d.).

According to the COI, the rise in government-supported militias composed mostly of religious minorities "shabiha" and the positioning of militias within their respective supportive communities fostered sectarian hostilities. According to the Free Syrian Lawyers Association, YPG forces forcibly displaced Arab residents in Kurdish areas, resulting in significant demographic changes in Tell Brak, al-Qahtaniya, and Ras al-Ayn in Hasakah province. The Free Syrian Lawyers Association reported that forced population transfers caused thousands of families to leave their homes and that the YPG arrested large numbers of children and women and killed an unknown number of civilians. The SNHR reported YPG forces killed 42 persons, including 15 children and three women on September 13 in Hajyea and Tal Hamis in Hasakah.

The NGO Kurdwatch reported Asayish forces captured and forcibly recruited an unknown number of young men between ages 18 and 30 at checkpoints in Darbasiyah.

All participants in the conflict used provocative sectarian rhetoric, which the COI warned risked inciting mass indiscriminate violence. The COI noted mass displacements of communities under ISIL, where residents were warned to conform to ISIL standards or leave. Communities experienced discriminatory

sanctions, including specialized religious taxes (jizya), forced religious conversions, destruction of religious sites, and expulsion of minority communities.

According to the COI, regime shelling destroyed religious sites as well as UNESCO world heritage sites. The UN Training and Research Agency reported in December that 290 heritage sites had been damaged. The SNHR documented the destruction of 244 places of worship due to regime violence throughout the year. On June 20, the Syrian ambassador to Russia stated 98 Christian churches had been either wholly or partially destroyed since the beginning of the conflict and 1,900 mosques had been destroyed. According to a February SNHR report, government forces continued to target mosques and churches. From January 1 to February 20, the regime dropped more than 330 barrel bombs on Darayya city, outside Damascus, hitting the Martqla church. In May regime shelling and violence destroyed the historic Jewish synagogue in Jobar. Government forces also pillaged and destroyed property, including homes, farms, and businesses of defectors and opposition figures.

Opposition forces also destroyed religious sites, including a Sufi shrine. In March, ISIL bombed and destroyed a Shia shrine in Raqqa. In May, ISIL forces destroyed Shiite religious sites, including the Uwais al-Qarni Shia mosque and seventh century tombs in Raqqa. In September, ISIL destroyed an Armenian church in Dayr al-Zawr.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

While the constitution provides for freedom of speech and press, the government severely restricted these rights, often terrorizing, abusing, or killing those who attempted to exercise these rights.

Freedom of Speech: The government maintained broad discretion to determine what constituted illegal expression, and individuals could not criticize the government publicly or privately without fear of reprisal. The regime also stifled criticism by invoking penal code articles prohibiting acts or speech inciting sectarianism. It monitored political meetings and relied on informer networks.

Press Freedoms: The government continued to exercise extensive control over local print and broadcast media, and the law imposes strict punishment for reporters who do not reveal their government sources in response to government

requests. A number of quasi-independent periodicals, usually owned and produced by individuals with government connections, published during the year. As of January the government began allowing on a very limited basis the use of Kurdish in state-run universities, following a decades-long, mostly ineffective ban prohibiting all Kurdish-language publications.

The government owned some radio and most local television companies, and the Ministry of Information closely monitored all radio and television news and entertainment programs to ensure adherence to government policies. Despite restrictions on ownership and use, satellite dishes were widely used, although the government jammed some Arab networks.

Books critical of the regime were illegal.

Violence and Harassment: Government forces detained, arrested, and harassed journalists and other writers for works deemed critical of the state. Harassment included attempts at intimidation, banning such individuals from the country, dismissing journalists from their positions, or failing to respond to requests for continued accreditation. The government systematically arrested journalists either associated with or writing in favor of the political opposition or the FSA and instigated attacks against foreign press outlets throughout the country. There were no further updates on the whereabouts of foreign journalist Austin Tice, who had been missing since August 2012. Government forces killed 211 media activists during the year, seven of whom died under torture, according to the SNHR.

The regime and ISIL routinely targeted and killed both Syrian and foreign journalists systematically, according to the COI. According to the SNHR, ISIL killed 23 journalists and held others in detention. Reporters Without Borders (RSF) estimated nearly 300 journalists had been killed by various parties since March 2011. The SNHR reported 17 journalists were killed during the year, bringing the total to 386 media activists killed since 2011. On December 8, several sources reported the deaths of three Orient News journalists covering opposition advances in Dara'a province: Rami Asmi, Yousef El-Dous, and Salem Khalil. The television station, which is associated with the opposition, believed government forces killed the journalists.

Censorship or Content Restrictions: The regime continued to control strictly the dissemination of information, including developments regarding fighting between the government and armed opposition, and prohibited most criticism of the government and discussion of sectarian problems, including religious and ethnic

minority rights. The Ministries of Information and Culture censored domestic and foreign publications prior to circulation or importation and prevented circulation of content determined critical or sensitive. The regime prohibited publication or distribution of any material security officials deemed threatening or embarrassing to the government. Censorship was usually greater for materials in Arabic.

Local journalist contacts reported they engaged in extensive self-censorship on subjects such as criticism of the president and his family, security services, or Alawite religious groups. Journalists, both domestic and foreign, who did not observe these guidelines were either required to leave the country or targeted for arrest, torture, or execution by the regime.

Libel Laws/National Security: Although the 2011 media law prohibits the imprisonment of journalists for practicing their profession, the regime continued to detain and arrest journalists who wrote in opposition to the regime. The regime charged these individuals under libel and national security laws.

Nongovernmental Impact: Opposition forces kidnapped and killed journalists. On December 17, the Committee to Protect Journalists (CPJ) reported ISIL forces kidnapped two journalists from the Kurdish media network Rudaw: reporter Farhad Hamo and photographer Massoud Aqeel. The CPJ also reported that on August 20, ISIL held three Orient News employees: Obaida Batal, Hussam Nidham al-Deen, and Aboud al-Atiq. The RSF also reported that on October 29, three gunmen shot and killed al-Arabiya TV correspondent Mohamed Saeed al-Khatib outside his home in Aleppo. Observers believed the killing was in retaliation for the al-Khatib's public criticism of the abduction of the three Orient TV employees. According to the RSF, the PYD subjected journalists to harassment and detention. In April ISIL released four foreign journalists after holding them for 10 months. In August, Jabhat al-Nusra released journalist Peter Theo Curtis after holding him captive for two years.

Internet Freedom

The government controlled and restricted the internet and monitored e-mail and social media accounts. Individuals and groups could not express views via the internet, including by e-mail, without prospect of reprisal. The government applied the media law, as well as the general legal code, to regulate internet use and prosecute users.

The government often monitored internet communications, including e-mail, and interfered with and blocked internet service, SMS messages, and two-step verification messages for password recovery or account activation. The security branches were largely responsible for restricting internet freedom and access; internet blackouts often coincided with security force attacks. The government did not attempt to restrict the security branches' monitoring and censoring of the internet.

Local human rights groups blamed government personnel for instances in which malware infected activists' computers. The government employed hundreds of computer specialists to monitor e-mail, Twitter, and Facebook accounts of detainees, activists, and others. Many areas no longer had internet access because of continued violence and damage to infrastructure largely perpetrated by the regime, especially in the north and east. Some towns in opposition-held areas had limited internet access via satellite connections.

Government authorities routinely tortured and beat journalists to extract passwords for social media sites, and the Syrian Electronic Army (SEA), a group of proregime computer hackers, frequently launched cyberattacks on websites to disable them and post proregime material. In addition to promoting hacking and conducting surveillance, the government and groups that it supported (like the SEA) reportedly planted malware to target human rights activists, opposition members, and journalists. Observers also accused the SEA of slowing internet access to force self-censorship on government critics and diverting e-mail traffic to government servers for surveillance. The SEA hacked CNN's Twitter account and the Reuters website. On January 9, a virus alert for a document called "leaked documents from a security officer on SyriaTel figures" was spread via Facebook and included links to a virus. On January 21, an unknown hacker sent a Trojan horse virus through e-mail before the January 22 start of the Geneva II conference. The sender claimed the file contained leaked confidential information related to the conference.

The government censored websites related to the opposition, including the websites for local coordination committees as well as media outlets. The government also restricted or prohibited internet access in areas under siege. Generally, there was little access to state-run internet service in besieged areas unless signals could be captured clandestinely from rooftops near government-controlled areas. Some activists reportedly gained access independently to satellite internet or through second and third-generation (3G) cell phone network coverage.

Meanwhile, the government expanded its efforts to use social media, such as Instagram, Twitter, and Facebook, to spread proregime propaganda. Activists reported that authorities forced them to provide the passwords to their e-mail and social media accounts and that government supporters attacked their websites. The government reportedly interrupted internet and mobile communications on a regional basis during key periods of unrest.

ISIL forces restricted access to internet cafes, specifically for women, confiscated cell phones and computers, and instituted strict rules for journalists to follow or face punishment. Jabhat al-Nusra forces reportedly also intentionally destroyed cell-phone towers in Qameshli.

Academic Freedom and Cultural Events

The government restricted academic freedom and cultural events. Authorities generally did not permit teachers to express ideas contrary to government policy. The Ministry of Culture restricted and banned the screening of certain films.

ISIL and Jabhat al-Nusra sought to restrict severely academic freedom and to curtail cultural events considered un-Islamic. Media sources reported schools in ISIL-controlled Raqqa banned several academic subjects, including chemistry and philosophy.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The constitution provides for the right of assembly, but the government restricted this right. Even after the 2011 repeal of the emergency law, a subsequent 2011 presidential decree grants the government broad powers over freedom of assembly.

The Ministry of Interior requires permission for demonstrations or any public gathering of more than three persons. The ministry disapproved all requests from groups not affiliated with the government. As a rule the ministry only authorized demonstrations by the regime or affiliated groups, or the Baath Party, orchestrating them on numerous occasions. The regime continued to use excessive force against peaceful demonstrators.

Peaceful protests continued throughout the year against the regime as well as in opposition-held areas against extremist entities. In opposition-held areas, extremist

armed opposition groups targeted activists, protesters, documentation groups, and media groups for detention, hostage taking, harassment, and executions.

The COI reported residents in ISIL-controlled parts of Aleppo and Raqqa noted severe restrictions on assembly.

According to Kurdish activists and press reporting, the YPG and PYD violently suppressed freedom of assembly and severely limited freedom of speech in areas under their control.

Freedom of Association

The constitution permits private associations but grants the government the right to limit their activities. The regime restricted freedom of association, requiring prior registration and approval for private associations and restricting the activities of associations and their members. The executive boards of professional associations were not independent from the government.

The regime often denied requests for registration or failed to act on them, reportedly on political grounds. None of the local human rights organizations operated with a license, but many functioned under organizations that had requisite government registration. The government continued to block the multi-year effort by journalists to form a countrywide media association. The regime selectively enforced the 2011 decree allowing the establishment of independent political parties, allowing only proregime groups to form official parties (see section 3). According to local human rights groups, opposition activists declined to organize parties, fearing the regime would use party lists to target opposition members.

Under the authority of laws that criminalize membership and activity in illegal organizations as determined by the government, security forces detained hundreds of persons linked to local human rights groups and prodemocracy student groups. The regime also searched these individuals' personal and social media contacts for further potential targets.

According to media reports and former residents of ISIL-controlled areas, ISIL did not permit the existence of associations that opposed the structures or policies of the "caliphate."

c. Freedom of Religion

See the Department of State's *International Religious Freedom Report* at www.state.gov/religiousfreedomreport/.

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The constitution provides for freedom of movement “within the territories of the state unless restricted by a judicial decision or by the implementation of laws.” Both the regime and ISIL, however, restricted internal movement and travel and instituted security checkpoints to monitor such travel throughout the regions under their respective control. Regime sieges--particularly in Homs, Moadamiya, Douma, and Eastern Ghouta--resulted in documented cases of death, starvation, and severe malnutrition (see section 1.g.). In the areas under its control, ISIL restricted the movement of regime supporters or assumed supporters, especially the Alawi and Shia populations. Other opponents of the regime also restricted the movement of such individuals, but to a lesser extent.

In-country Movement: The regime besieged cities throughout the country, blocking humanitarian access and leading to severe malnutrition and lack of access to medical care. According to the United Nations, there were 11 such besieged areas with 212,000 inhabitants. The violence, coupled with significant cultural pressure, severely restricted the movement of women in many areas. Additionally, the law allows certain male relatives to place travel bans on women (see section 6, Women).

The regime generally did not cooperate with the UNHCR and other humanitarian organizations in assisting refugees and asylum seekers. The government provided some cooperation to UNRWA.

The regime relied on security checkpoints to monitor and limit movement and expanded them into civilian areas. The government also barred foreign diplomats from visiting most parts of the country and rarely granted them permission to travel outside Damascus. The consistent high level and unpredictability of violence severely restricted movement throughout the country.

ISIL and opposition groups also controlled movement, including through the use of checkpoints.

In one particularly egregious example, residents of Aleppo city seeking to cross from the eastern rebel-controlled part of the city to the western regime-controlled

area (or vice versa), a distance of less than one mile, reported they had to take a detour of more than 250 miles through desert areas by bus, according to residents of Aleppo and media reports. The frontline between rebel- and regime-controlled areas of Aleppo divided the city from north to south. Government snipers targeted those attempting to cross the line, which local residents dubbed “the path of death.” The official crossing between east and west Aleppo city, known as “Bustan al-Qasr,” was closed in May. The drive through massive desert detour routes exposed passengers and drivers to arbitrary arrest, unlawful search and seizure of property, demands for bribes, and detention and execution at checkpoints administered by ISIL, the government, and other armed actors.

ISIL reportedly did not permit female passengers to traverse territory it controlled unless accompanied by a close male relative, and it imposed severe restrictions on women’s attire in public.

Foreign Travel: Citizens have the right to travel internationally; however, the government denied passports and other vital documents based on the applicant’s political views, association with opposition groups, or ties to geographic areas where the opposition dominated. The government also imposed exit visa requirements and routinely closed the Damascus airport and border crossings, claiming the closures were due to violence or threats of violence. Additionally, the government often banned travel by human rights or civil society activists, their families, and affiliates. Many citizens learned of the ban against their travel only when authorities prevented them from departing the country. The government usually applied travel bans without explanation or explicit duration, including cases when individuals sought to travel for health reasons. The government comprehensively banned international travel of opposition members, often targeting any such individual who attempted to travel. Local media and human rights groups repeatedly stated opposition activists and their families hesitated to leave the country, fearing they would be attacked at airports and border crossings.

There were reports ISIL destroyed Syrian passports and legal records and was producing its own passports, not recognized by any country or entity. These policies disproportionately affected children, because many left the country before obtaining a passport or identification card. An estimated 8,000 minors crossed the borders without an adult or documentation. Additionally, Syrians born in refugee camps abroad for the most part did not have access to Syrian citizenship documents.

Women above age 18 have the legal right to travel without the permission of male relatives, but a husband may file a request with the Interior Ministry to prohibit his wife from departing the country.

ISIL explicitly prohibited women from foreign travel.

Emigration and Repatriation: On their return to the country, both persons who unsuccessfully sought asylum in other countries and those who had previous connections with the Muslim Brotherhood faced prosecution. The law provides for the prosecution of any person who attempts to seek refuge in another country to evade penalty in Syria. The regime routinely arrested dissidents and former citizens with no known political affiliation who attempted to return to the country after years or even decades of self-imposed exile. Many emigrants who did not complete mandatory military service could pay a fee to avoid conscription while visiting the country, but this option tended to vary by ethnicity and socioeconomic status. Persons of Syrian origin who were born in a foreign country but were able to demonstrate service in the army of the country of birth were exempt from military service without payment.

Internally Displaced Persons (IDPs)

The regime did not resettle IDPs and provided inconsistent protection and assistance.

At year's end the United Nations estimated there were more than 7.6 million IDPs in the country. The figures on the IDP population varied widely since many areas were inaccessible; actual figures may have been higher. Displacement increased dramatically during the year as violence intensified. UN humanitarian officials reported most IDPs sought shelter in private homes, schools, and other overcrowded public buildings, many with inadequate sanitation and irregular delivery of relief supplies. The SARC functioned as the main partner for many major international humanitarian organizations working inside the country to provide humanitarian assistance in both government- and opposition-controlled areas. Access difficulties--including those imposed by the government, ISIL, and opposition groups--hindered the delivery of aid to persons in need. The SARC and UN agencies sought to increase the flow of assistance to opposition-held areas to meet pressing humanitarian needs. The regime routinely disrupted the supply of humanitarian aid to rebel-held areas, particularly medical assistance (see section 1.g.).

UN agencies also reported opposition forces interfered with the provision of humanitarian assistance to some regime-held areas.

International organizations such as the World Food Program and International Federation of the Red Cross and Red Crescent Societies attempted to continue providing food and medical assistance, but the regime, ISIL, and some opposition groups actively resisted this assistance in many cases.

On October 29, international assistance groups and social media reported the regime's air force dropped barrel bombs onto IDPs in the Abedin IDP camp in Idlib Governorate, killing as many as 75 civilians.

Protection of Refugees

Access to Asylum: The law provides for the granting of asylum or refugee status, and the government has established a system for providing protection to refugees. The UNHCR and UNRWA were able to maintain limited protection areas for refugees and asylum seekers, although violence sometimes hampered access to vulnerable populations. With the assistance of the SARC, the United Nations continued to provide such individuals essential services and assistance.

Refugee Abuse: Refugee abuse occurred, including detentions of refugees and refugee children. Some refugee populations reported fear of abuse by combatants in the civil war due to nationality or religion. Additionally, both government and opposition forces besieged Palestinian refugee camps throughout the country, which resulted in severe malnutrition and lack of access to medical care and humanitarian assistance. The regime cut off humanitarian aid and access to the Yarmouk Palestinian refugee camp for more than a year, leaving 18,000 civilians without medical care and at risk of starvation.

Employment: The law does not explicitly permit refugees, except for Palestinians, the right to work. The government rarely granted refugees a work permit; however, many refugees found work in the informal sector as guards, construction workers, street vendors, and in other manual jobs.

Access to Basic Services: The law allows for the issuance of identity cards to Palestinian refugees and the same access to basic services provided to citizens. The regime also allowed Iraqi refugees access to publicly available services, such as health care and education.

The UNHCR estimated that at least 95,000 mainly Yezidi Iraqis entered the country following ISIL's attack on Sinjar District in Iraq, beginning on August 4. Many had initially fled to Mount Sinjar but managed to evacuate the mountain with the assistance of military strikes led by the Western coalition and support from Syrian Kurdish groups, who transported many Yezidis into the country. While the majority of these persons returned to Iraq through the Iraqi Kurdistan Region, the UNHCR estimated approximately 3,000 continued to reside in Newroz Camp, in the Malkia area. Others also moved to villages in the cities of Malkia, Qamishly, Amuda, and Derbasia.

Stateless Persons

Approximately 160,000 “unregistered” Kurds remained in the country without a national identity, according to the most recent estimate from 2011. The government distinguished the Kurds as foreigners, which denied them access to services. Following the 1962 census, approximately 150,000 Kurds lost their citizenship. A legislative decree ordained the single-day census in 1962, and the government executed it unannounced with regard to the inhabitants of al-Hassake province. Government justification for this measure was to identify Kurds who had entered the country since 1945. Anyone not registered for any reason or without all required paperwork became “foreign” from that day onward. In similar fashion, anyone who refused to participate was recorded as “undocumented.” Because of this loss of citizenship, these Kurds and their descendants lacked identity cards and were unable to access government services, including health care and education. They also faced social and economic discrimination. Stateless Kurds do not have the right to inherit or bequeath assets, and their lack of citizenship or identity documents restricted their travel to and from the country.

In 2011 President Asad issued a decree declaring that stateless Kurds in al-Hassake province who were registered as “foreigners” could apply for citizenship. The UNHCR reported an unknown number of stateless Kurds eligible under the decree received citizenship documents. The decree, however, did not extend to the approximately 160,000 “unregistered” stateless Kurds. The change from 150,000 to 160,000 reflected an approximate increase in population since the 1962 census.

Children derive citizenship solely from the father. Because women cannot confer nationality on their children, an unknown number of children whose fathers were missing or deceased due to the continuing conflict were at risk of statelessness.

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

Although the constitution provides the ability for citizens to change their government peacefully through elections, they did not have that ability because elections were neither free nor fair.

Elections and Political Participation

Recent Elections: On May 4, Bashar Asad, Hassan al-Nouri, and Maher Hajjar registered as candidates for the June 3 presidential elections administered in disparate areas of the country; the majority of citizens could not access polling places because of violence or displacement. The process, in which Asad collected 88.7 percent of the vote, was neither free nor fair by international standards. Voters faced intimidation by security elements, and the regime forcibly transported state employees in Damascus to polling centers, according to observers and the media. Media reports described low overall voter turnout, even among those in relatively stable areas with access to polling stations. Only voters in regime-controlled territory, certain refugee areas, and refugees who left the country after obtaining official permission were entitled to vote. According to a June 3 report of Human Rights First, Hizballah threatened Syrian refugees if they did not vote for Asad. Security forces increased security measures in Damascus and surrounding areas under government control to maximize voter turnout. Nonetheless, violence continued throughout the country, and some armed opposition groups fired missiles at government-controlled areas during the voting period.

Political Parties and Political Participation: The constitution provides that the Baath Party is the ruling party and assures that it has a majority in all government and popular associations, such as workers' and women's groups. The Baath Party dominated the 250-member People's Council, holding 134 of the 250 parliament seats following the 2012 election. The Baath Party and nine other smaller satellite political parties constituted the coalition National Progressive Front. A 2011 decree allows establishment of additional political parties, although it forbids those based on religion, tribal affiliation, or regional interests.

Membership in the Baath Party or close familial relations with a prominent party member or powerful government official assisted in economic, social, and educational advancement. Party or government connections made it easier to gain admission into better schools, access lucrative employment, and achieve greater advancement and power within the government, military, and security services.

The regime reserved certain prominent positions, such as provincial governorships, solely for Baath Party members.

The regime showed little tolerance for other political parties. The government harassed parties such as the Communist Union Movement, the Communist Action Party, and Arab Social Union, and it arrested their members. Police arrested members of Islamist parties. The number of illegal political parties proliferated from previous years, although reliable data was unavailable.

Participation of Women and Minorities: Women and minorities generally participated in the political system without formal restriction, although significant cultural and social barriers largely excluded women from decision-making positions. The government included three female members: the vice president, minister of state for environmental affairs, and minister of social affairs. There were 30 female members of parliament. There were Christian, Druze, and Kurdish members in the parliament. Alawites, the ruling religious minority, held greater political power than other minorities in the cabinet, as well as greater power than the majority Sunni sect.

In July the National Coalition for the Syrian Revolutionary and Opposition Forces also held internal elections in Istanbul, resulting in the election of a new Syrian Opposition Coalition President, Hadi al-Bahra, as well as a tripartite vice presidency including one female vice president, Noura al-Amir.

Section 4. Corruption and Lack of Transparency in Government

The law provides criminal penalties for official corruption; however, the government did not implement the law effectively, and officials frequently engaged in corrupt practices with impunity. Corruption continued to be a pervasive problem in police forces and security services and throughout the government.

Corruption: Due to the lack of free press and of opposition access to instruments of government and the media, there was almost no detailed information about corruption, except petty corruption. There were reports of prison guards demanding bribes from prisoners and their visitors. Visiting family members who paid higher bribes enjoyed visits to detainees without police surveillance. The price of bribes continued to rise from previous years. Human rights lawyers and family members of detainees stated government officials in courts and prisons solicited bribes for favorable decisions and provision of basic services. Traffic

police officers regularly solicited bribes from drivers, and child laborers reported bribing police to avoid arrest.

Financial Disclosure: There are no public financial disclosure laws for public officials. The prime minister's Central Commission for Control and Inspection is the main administrative body responsible for coordinating and monitoring public sector corruption. Each government body, including the ministries, has a Control and Inspection Department that reports directly to the Central Commission.

Public Access to Information: The 2011 media law provides for access to information from ministries and other government institutions. The law contains ambiguous exceptions for nondisclosure, including forbidding access to information that "affects national unity and national security." The law obliges authorities to respond to requests within seven days of receiving an inquiry. Administrative judiciary courts are required to investigate total or partial refusals of information requests and issue a decision within one month. The law does not stipulate penalties for noncompliance. There was no evidence the government implemented the law during the year.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The regime restricted attempts to investigate alleged human rights violations and actively refused to cooperate with any independent attempts to investigate alleged violations. The regime did not grant permission for the formation of any domestic human rights organizations. Nevertheless, hundreds of such groups operated illegally in the country. There were reports the regime harassed domestic human rights activists by subjecting them to regular surveillance and travel bans. The regime normally responded to queries from human rights organizations and foreign embassies regarding specific cases by reporting that the case was still under investigation; that the prisoner in question had violated national security laws; or, if the case was in criminal court, that the executive branch could not interfere with the allegedly independent judiciary. The regime often sought members of these organizations for harassment, detention, arrest, torture, and execution.

The regime was highly suspicious of international human rights NGOs and did not allow them into the country. Reports and media interviews with government officials indicated the regime denied committing any human rights abuses. It denied other organizations access to several locations where government agents were launching assaults on antigovernment protesters or allegedly holding

prisoners detained on political grounds. The regime also actively restricted the activities of humanitarian aid organizations, especially along supply routes and access points near opposition-controlled areas (see section 1.g.).

The United Nations or Other International Bodies: The regime continued to deny access to the UN Commission of Inquiry, mandated by the UN Human Rights Council to document and report on human rights violations and abuses in the country. It did not cooperate fully with numerous UN bodies, resulting in restrictions on access for humanitarian organizations, especially to opposition-controlled areas. The regime also rejected UN requests to supply independent monitors for the 2012 parliamentary elections. In April the UN secretary-general urged the government not to hold elections that were not consistent with the Geneva communique.

Following the August 2013 chemical weapon attacks near Damascus, a UN mission led by Ake Sellstrom, and supported by the OPCW and World Health Organization, visited affected sites inside the country and concluded there was “clear and convincing evidence that surface-to-surface rockets containing the nerve agent sarin were used in Ein Tarma, Moadamiya al-Sham, and Zamalka, in the Ghouta area of Damascus.” In October 2013 an OPCW-UN Joint Mission was established to verify the removal and destruction of the government’s declared stockpiles of chemical weapons. In June the joint mission verified the removal of all such weapons, but the media noted omissions and discrepancies in the government’s declarations.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

The constitution provides for equal rights and equal opportunity for all citizens and prohibits discrimination based on race, gender, disability, language, or social status. The constitution does not address sexual orientation or gender identity. The government did not enforce the law effectively or make any serious attempt to do so. Women faced widespread violence, discrimination, and significant restrictions on their rights. ISIL imposed severe restrictions on women’s personal conduct, attire, and freedom of movement in the territory it controlled (see section 1.g.).

Women

Rape and Domestic Violence: Rape is a felony, but the government did not enforce the law. The COI reported rape was widespread and regime and proregime

forces used rape to terrorize and punish women, men, and children perceived as associated with the opposition (see section 1.g.). The COI concluded that underreporting and delayed reporting of sexual violence was endemic, rendering an assessment of its magnitude difficult. Reports by the SNHR, HRW, and other NGOs included interviews with female former prisoners, who reported rape by guards and security forces was common in detention facilities. One woman interviewed by the SNHR was raped consecutively by three different men. According to the COI, officials in detention facilities subjected girls as young as age 13 to sexual assault.

Rape is subject to punishment by at least 15 years in prison. The law further stipulates that the rapist faces no punishment if he marries the victim. The victim's family sometimes agreed to this arrangement to avoid the social stigma attached to rape. There are no laws against spousal rape. Observers of the refugee crisis reported women, men, and community leaders consistently identified sexual violence as a primary reason their families fled the country.

The law does not specifically prohibit domestic violence, and violence against women was extensive and generally went unpunished. Victims did not report the vast majority of domestic violence and sexual assault cases. Victims traditionally were reluctant to seek assistance outside the family due to fear of social stigmatization. Security forces consistently treated violence against women as a social rather than a criminal matter. Observers reported that when some abused women tried to file a police report, police did not investigate their reports thoroughly, if at all, and in other cases police officers responded by abusing the women, including by sexual harassment, verbal abuse, hair pulling, and slapping.

In the past several domestic violence centers operated in Damascus and were licensed by the government and affiliated with the Ministry of Social Affairs and Labor. Local NGOs reported, however, that many centers no longer operated due to the conflict. There were no known government-run services for women outside Damascus. According to local human rights organizations, local coordination committees and other opposition-related groups offered programming specifically for protection of women; however, NGOs did not integrate these programs throughout the country, and none reported reliable funding.

Activists, NGOs, and the press reported numerous accounts of women in ISIL-held territory facing arbitrary and severe punishments, including execution by stoning. On July 17, ISIL members brought a woman to the main stadium in Tabqa and stoned her to death. The next day ISIL members similarly executed a second

woman in Raqqa. On October 21, ISIL members fatally stoned another woman in Hama. In October, Jabhat al-Nusra stoned to death a man accused of adultery in Idlib province, according to reports circulated on social media and other press.

Numerous NGOs and activists also reported women in ISIL-held areas were raped or forced to marry ISIL fighters. In January a report in *al-Monitor* noted that two women in Raqqa were beaten after initially refusing marriage proposals. Other reports described Yezidi women captured in Iraq, transferred to Syria, and sold to ISIL fighters. In August the SOHR reported ISIL authorities sold at least 27 Yezidi women to ISIL fighters in the country and that ISIL forces captured as many as 300 women in Iraq and moved them to Syria. In October reports by the BBC and the *Economist* noted that ISIL forces captured and trafficked between 2,000 and 3,000 Yezidi women and children from Iraq and Syria. According to the July 4 report of the UN Committee on the Elimination of Discrimination Against Women (CEDAW), hundreds of women and girls committed suicide when faced with being forcibly married to ISIL fighters (see section 6, Children).

Female Genital Mutilation/Cutting (FGM/C): There is no law against FGM/C. Observers provided no reports of FGM/C. The abuse was previously reported primarily in rural Kurdish communities.

Other Harmful Traditional Practices: The law permits judges to reduce legal penalties for murder and assault if the defendant asserts an “honor” defense, which often occurred. The government kept no official statistics on use of this defense in murder and assault cases. There were no officially reported “honor” killings in the past year, but local human rights groups asserted the practice continued, reportedly at previous levels despite or even because of the continuing violence. NGOs working with refugees reported families reportedly killed some rape victims inside the country, including those raped by regime forces, for reasons of “honor.” NGOs also reported the conflict led to a significant rise in “honor” killings due to the pervasive use of rape by regime forces and sexual slavery and compulsion by ISIL.

Sexual Harassment: The law prohibits sexual harassment and specifies different punishments depending on whether the victim is a minor or an adult. The government did not enforce the law. Victims rarely reported sexual harassment due to social and cultural pressures.

Reproductive Rights: The regime generally respected the basic rights of couples and individuals to decide freely and responsibly the number, spacing, and timing of children, including the right to have the information and means to do so, and the

right to attain the highest standard of reproductive health free from discrimination, coercion, and violence. Women reportedly had little to no regular access to contraception and maternal health services such as skilled attendance during childbirth, prenatal care, or essential obstetric and postpartum care outside of Damascus. Activists reported regime detention centers did not afford medical care to women during pregnancy or birth.

Violence throughout the country made accessing medical care and reproductive services both costly and dangerous, and the COI reported the regime and armed extremists sometimes denied pregnant women passage through checkpoints, forcing them to give birth in unsterile and often dangerous conditions, without pain medication or adequate medical treatment. According to the United Nations Population Fund (UNFPA), 432,000 pregnant women within the country were in need of care as of October. The UNFPA provided reproductive health services to women by distributing reproductive health kits. According to numerous sources, government forces deliberately denied medical care to persons in areas controlled by the opposition.

According to a CEDAW civil society report, an increasing number of women opted to give birth through Caesarian sections to control the timing of delivery, avoiding the possibility of being harassed at government checkpoints or traveling in insecure environments while in labor. Female victims subjected to sexual violence lacked access to immediate health care. Consequences included severe physical injuries, psychosocial trauma, unwanted pregnancies, social stigmatization, and infection with sexually transmitted diseases, including HIV-AIDS. The destruction of hospitals further complicated access to health care. The lack of contraceptives caused many rape victims to face physical, social, and psychological consequences of both rape and any ensuing pregnancy.

Discrimination: Although the constitution provides for equality between men and women and the “right of every citizen to earn his wage according to the nature and yield of the work,” the law does not explicitly stipulate equal pay for equal work. Moreover, a number of sections of family and criminal law do not treat men and women equally. Before the regime violence began, only 16 percent of women participated in the formal labor force, compared with 72 percent of men. The female employment percentage decreased as violence and insecurity increased. In previous years the government sought to overcome traditional discriminatory attitudes toward women and encouraged women’s education by providing equal access to educational institutions, including universities. Before the onset of violence, women composed 41 percent of tertiary education students.

The Commission for Family Affairs, Ministry of Justice, and Ministry of Social Affairs and Labor shared responsibility for attempting to afford equal legal rights to women. Governmental involvement in civil rights claims, including cases against sexual discrimination, was stagnant, and most claims went unanswered.

Personal status, retirement, citizenship, and social security laws discriminate against women. Men constituted the vast majority of the judiciary, and NGOs suggested this circumstance led to discriminatory treatment of women by federal courts. Under criminal law if a man and a woman separately commit the same criminal act of adultery, the woman's punishment is double that of the man's. The law generally permits women to initiate divorce proceedings against their spouses, although some Christian sects heavily discouraged both women and men from doing so. For Muslims personal status law treats men and women differently. Some personal status laws mirror Islamic law regardless of the religion of those involved in the case. A divorced woman is not entitled to alimony in some cases, such as if she gave up her right to alimony to persuade her husband to agree to the divorce. Additionally, under the law a divorced mother loses the right to guardianship and physical custody of her sons when they reach age 13 and of her daughters at age 15, when guardianship transfers to the paternal side of the family.

The government's interpretation of Islamic law is the basis of inheritance law for all citizens except Christians. Accordingly, courts usually granted Muslim women half of the inheritance share of male heirs. In all communities male heirs must provide financial support to female relatives who inherit less. If they do not, women have the right to sue. During the year there were reports that in some regions custom prevailed over the law, and women received no inheritance. A woman's husband, or male relative in a husband's absence, may request that the government prohibit his wife's travel abroad.

Women participated actively in public life and in most professions, including the armed forces, although violence in many regions reduced women's access to the public sphere. Legally, women and men had equal rights in owning or managing land or other property; however, cultural and religious norms impeded women's rights, especially in rural areas. Various sources observed that women constituted a minority of lawyers, university professors, and other professions. While women served in the judiciary, parliament, and high levels of government, the government often denied them decision-making positions. According to several organizations, women were underrepresented in the judiciary, as only 13 percent of judges before

the start of the revolution were women. The SNHR suggested that few, if any, women participated as judges in the courts.

In areas under its control, ISIL published a “Civilization Document” including 16 points a woman must follow or be punished by death. They include: staying at home and not going out without an immediate male relative (Mahram); wearing a wide cloak, full face veil and head scarf; closing hair salons; not sitting on chairs in public; and not seeing male doctors. ISIL established the “al-Khanssaa” all-female police force in Raqqa, composed mostly of noncitizen women, that enforced these regulations, sometimes violently, among women.

Some opposition elements reportedly banned women from teaching and girls from attending school (particularly in ISIL-controlled Dayr al-Zawr Governorate) and also forbade women from participating equally in irregularly constituted courts (Aleppo Governorate). Women did not hold an equal share of political positions in local opposition governance bodies but remained active in civil society, humanitarian assistance delivery, media, and education. Women were not well represented on local or provincial councils, accounting for only 3.2 percent of the leadership positions according to NGOs.

In some opposition-held areas, extremist elements interfered with girls’ right to attend school and prevented female teachers from entering classrooms. According to activists from Raqqa, ISIL segregated classrooms and removed women from the local councils in territories it controlled. According to several groups, including HRW, extremist armed groups placed discriminatory restrictions on women and girls in Aleppo, al-Hassakah, Idlib, and Raqqa governorates. Such restrictions included strict dress codes, limitations on women’s engagement in public life and ability to move freely, and constraints on their access to education and employment. Jabhat al-Nusra and ISIL insisted that women follow a strict dress code that mandated wide cloaks and headscarves and that prohibited jeans, close-fitting clothing, and cosmetics. According to interviewees, members of these groups forbade women to go out in public without a male family member accompanying them in Idlib City, Ras al-Ayn, Tel Abyad, and Tel Aran. Women and girls who did not abide by the restrictions were threatened with punishment and, in some cases, blocked from using public transportation, accessing education, and buying bread. Refugees from Idlib city, Tel Abyad, and Tel Aran related that Jabhat al-Nusra and ISIL banned women from working outside the home.

There were limited reports of women actively participating in hostilities, including in armed Kurdish opposition groups and the mostly secular “Mother Aisha

Brigade,” considered part of the moderate armed opposition in Aleppo. There also were limited reports of female ISIL members actively participating in armed hostilities. In Raqqa ISIL enlisted some women into the all-female “al-Khanssaa” brigade, a policing unit used to staff checkpoints, enforce ISIL laws, and participate in some house raids.

Women were not well represented in the Syrian Opposition Coalition, although one of the three vice presidents was a woman. During the year civil society groups called on the opposition to institute a quota to enhance women’s representation.

Children

Birth Registration: Children derive citizenship solely from the father. In large areas of the country where civil registries were not functioning, births were not registered immediately. The government did not register the births of Kurdish noncitizen residents, including stateless Kurds (see section 2.d.). Failure to register resulted in deprivation of services.

Education: The government provided free public education to citizen children from primary school through university. Education is compulsory for all children between ages six and 12. Noncitizen children could also attend public schools at no cost but required permission from the Ministry of Education.

The conflict increasingly hampered the ability of children to attend school. The UN Office for the Coordination of Humanitarian Affairs estimated more than 4,500 public schools had closed since the start of the conflict. According to the United Nations, between 2.1 and 2.4 million schoolchildren between ages three and 17--approximately 38 percent of all school-age children in the country--were no longer attending school. In one example of the violence affecting schoolchildren, an October bombing outside a school in Homs killed 53 persons, including 46 children. Societal pressure for early marriage and childbearing interfered with girls’ educational progress, particularly in rural areas, where dropout rates for female students remained high.

According to several reports, ISIL segregated classrooms (including teachers) by gender, dismissed students due to dress codes, imposed their curriculum on teachers, and closed private schools and educational centers. According to local sources, ISIL forces restricted young women from Raqqa from traveling to complete their university exams. ISIL also banned several basic education subjects such as chemistry.

Generally, Palestinians and other noncitizens, including stateless Kurds, can send their children to school and universities; however, stateless Kurds are ineligible to receive a degree documenting their academic achievement.

Child Abuse: The country lacked a formal law protecting children from abuse. There were reports, usually associated with antigovernment protests, of regime forces sexually assaulting, torturing, detaining, and killing children (see sections 1.a., 1.b., and 1.c.). HRW reported government teachers and principals interrogated and in some cases beat students who expressed antigovernment sentiments. Additionally, the United Nations, HRW, and local news sources reported regime forces used children as human shields.

ISIL subjected children to extremely harsh punishments, including execution (see section 1.g.).

Early and Forced Marriage: The legal age for marriage is 18 for men and 17 for women. A male age 15 or older and a female age 13 or older may be married if a judge deems both parties willing, “physically mature,” and if the fathers or grandfathers of both parties consent. Although underage marriage declined considerably in past decades, it was common and occurred in all communities, albeit in greater numbers in rural and less developed regions. The media and NGOs reported early marriage, particularly among girls, was increasing among Syrian refugee populations.

NGOs reported ISIL captured Yezidi girls in Iraq and transported them to Syria to give or sell them to ISIL fighters as wives (see section 6, Women). In October a magazine published by ISIL included a section justifying the capture and forced marriage of Yezidi women and girls.

According to the Free Syrian Lawyer’s Association, ISIL forces in Raqqa oversaw the compulsory marriage of women to its fighters. The city also experienced an increase in compulsory marriages of young women to ISIL fighters by local families seeking to earn money in exchange for authorizing the marriage as well as from families sympathetic to the group. Videos posted on social media showed ISIL fighters publicly negotiating the price of women for marriage.

Female Genital Mutilation/Cutting (FGM/C): There is no law against FGM/C. Observers provided no reports of FGM/C.

Sexual Exploitation of Children: The penal code stipulates penalties for those found guilty of certain forms of child abuse associated with trafficking crimes, including kidnapping and forced prostitution, both of which carry a penalty of up to three years in prison. Rape of a child less than age 15 is punishable by up to 21 years in prison. There were no reports of government prosecution of child rape cases.

Media and NGOs claimed that sexual exploitation of girls less than age 15 remained widespread. In refugee communities some families reportedly prostituted young women and girls due to economic desperation. There were also reports that local government officials and aid workers sexually exploited women and girls in refugee camps.

The age of sexual consent, in accordance with the law, is age 15. Premarital sex is illegal, but observers reported the law was not enforced.

The law considers child pornography a trafficking crime, but the penalties for child pornography were unknown. Additionally, it was unclear if there had been any prosecutions for child pornography or if the law was enforced.

ISIL systematically engaged in the abduction and sexual exploitation of Yezidi girls in Iraq and their transport to Syria for sexual exploitation (see section 1.g.).

International Child Abductions: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction.

Anti-Semitism

NGOs estimated fewer than 20 Jews remained in the country. According to the media and Syrian American Council, in late May regime forces destroyed Eliyahu Hanabi synagogue, the country's oldest synagogue, in an artillery attack on Jobar, a rebel neighborhood in Damascus. In April both regime and opposition forces accused each other of burning and looting the Jobar synagogue.

The national school curriculum did not include materials on tolerance education or the Holocaust.

On November 13, *The New York Times* reported ISIL commander Abu Bakr al-Baghdadi called on Muslims throughout the Middle East to rise up against “the agents of the Jews and crusaders.”

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

Persons with Disabilities

The law prohibits discrimination against persons with disabilities and seeks to integrate them into the public sector workforce, but the government did not effectively enforce these provisions. The law protects persons with disabilities from discrimination in education, access to health care, or provision of other state services, and it reserves 4 percent of government sector jobs and 2 percent of private sector jobs for persons with disabilities. The law did not specifically restrict the rights of persons with disabilities regarding access to air travel and other transportation. Private businesses are eligible for tax exemptions after hiring persons with disabilities. The law does not address specific disabilities.

Authorities did not fully document the number of persons with disabilities, but the conflict negatively affected persons with disabilities and increased their numbers through injuries. The SNHR reported the deaths of hundreds of citizens with pre-existing health conditions who could not access medical facilities due to conflict-related travel restrictions, including both regime and extremist checkpoints. In other instances regime blockades prevented the movement of medical supplies and persons to opposition-held areas and prevented persons with medical needs from seeking appropriate treatment.

The government did not effectively implement access for persons with disabilities to buildings, communication, or information. Children with disabilities attended primary and secondary school in addition to seeking higher education.

The Ministry of Social Affairs and Labor is responsible for assisting persons with disabilities and worked through dedicated charities and organizations to provide assistance.

National/Racial/Ethnic Minorities

As in previous years, the regime actively restricted national and ethnic minorities from conducting traditional, religious, and cultural activities. The Kurdish population, citizens and noncitizens, faced official and societal discrimination and

repression as well as government-sponsored violence. Government forces arrested, detained, and reportedly tortured numerous Kurdish activists during the year.

The government continued to limit the use and teaching of the Kurdish language. It also restricted publication of books and other materials in Kurdish, Kurdish cultural expression, and at times the celebration of Kurdish festivals. Authorities continued enforcement of a 2009 government rule requiring that at least 60 percent of the words on signs in shops and restaurants be in Arabic.

Clashes between Kurdish groups and ISIL intensified during the year. In addition to killings, extremist groups and Kurdish groups engaged in reciprocal kidnappings. In October at least 190,000 residents of the Kurdish town of Kobane fled ahead of an ISIL offensive, according to media reports. Reportedly, more than 650 persons were killed in the fighting near Kobane. According to an HRW report, in May ISIL abducted 153 Kurdish children when they attempted to return to Kobane after completing year-end exams in Aleppo.

The Alawite community, to which Bashar Asad belongs, enjoyed privileged status throughout the government and dominated the state security apparatus and military leadership. Nevertheless, the regime also targeted Alawite opposition activists for arbitrary arrest, torture, detention, and killing. Extremist opposition groups targeted Alawite communities on several occasions for their perceived proregime stance. In October a bomb detonated by an unknown party outside a school in a predominantly Alawite part of Homs killed at least 41 children.

Acts of Violence, Discrimination, and Other Abuses Based on Sexual Orientation and Gender Identity

The penal code prohibits homosexual relations, defined as “carnal relations against the order of nature,” and provides for at least three years’ imprisonment. Specifically, the law criminalizes any sexual act that is “contrary to nature.” In previous years police used this charge to prosecute lesbian, gay, bisexual, and transgender (LGBT) individuals. There were no reports of prosecutions under the law during the year; however, reports indicated the government arrested dozens of gay men and lesbians over the past several years on charges such as abusing social values; selling, buying, or consuming illegal drugs; and organizing and promoting “obscene” parties.

Although there were no known domestic NGOs focused on LGBT matters, there were several online networking communities, including an online LGBT-oriented

magazine. Human rights activists reported there was overt societal discrimination based on sexual orientation and gender identity in all aspects of society. There were also reports of extremist groups threatening LGBT activists.

Local media reported numerous instances in which security forces used accusations of homosexuality as a pretext to detain, arrest, and torture civilians. The frequency of such instances was difficult to determine since police rarely reported their rationale for arrests. Furthermore, social stigma prevented many victims of such abuse from coming forward, even when accusations were false.

HIV and AIDS Social Stigma

There were no reports of violence or discrimination against persons with HIV/AIDS, but human rights activists believed such cases were widely underreported. Neither the regime, the World Bank, nor the World Health Organization maintained current data on the number of persons infected with HIV/AIDS living in Syria. However, the HIV/AIDS rate of infection was expected to rise with increased sexual violence in the country.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law provides for the right to form and join unions, conduct legal labor strikes, and bargain collectively; however, there were excessive restrictions on these rights. The law prohibits antiunion discrimination, but the law also allows employers to fire workers at will.

The law restricted these rights, including by requiring all unions to belong to the government-affiliated General Federation of Trade Unions (GFTU). Restrictions on freedom of association also included fines and prison sentences for illegal strikes, and the government could impose forced labor as punishment on individuals who caused “prejudice to the general production plan.” The law prohibits strikes involving more than 20 workers in certain sectors, including transportation and telecommunication, or strike actions resembling public demonstrations.

The law requires that government representatives be part of the bargaining process in the public sector, and the Ministry of Social Affairs and Labor could object to, and refuse to register, any concluded agreements. The labor code and relevant

protections did not apply to workers covered under the Civil Service Law, under which employees neither have nor are deemed to need collective bargaining rights, nor does it apply to domestic servants, agricultural workers, NGO employees, or informal sector workers. There are no legal protections for self-employed workers, although they comprised a significant proportion of the total workforce. Foreign workers may join the syndicate representing their profession; however, they may not run for elected positions, with the exception of Palestinians, who may serve as elected officials in unions.

The government did not enforce applicable laws effectively or make any serious attempt to do so during the year.

The Baath Party dominated the GFTU, and Baath Party doctrine stipulates that its quasi-official constituent unions protect worker rights. The GFTU president was a senior member of the Baath Party, and he and his deputy could attend cabinet meetings on economic affairs. In previous years the GFTU controlled most aspects of union activity, including which sectors or industries could have unions. It also had the power to disband union governing bodies. Union elections were generally free of direct GFTU interference, but successful campaigns usually required membership in the Baath Party. Because of the GFTU's close ties to the government, the right to bargain collectively did not exist in practical terms. Although the law provides for collective bargaining in the private sector, past government repression dissuaded most workers from exercising this right.

There was little information available on employer practices with regard to antiunion discrimination. Unrest and economic decline during the year caused many workers to lose their private sector jobs, giving employers the stronger hand in disputes.

b. Prohibition of Forced or Compulsory Labor

The law does not prohibit all forms of forced or compulsory labor, and such practices existed. There was little information available on government efforts to enforce relevant laws during the year.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/j/tip/rls/tiprpt/.

c. Prohibition of Child Labor and Minimum Age for Employment

The labor law provides for the protection of children from exploitation in the workplace. The minimum age for most types of nonagricultural labor is 15 or the completion of elementary schooling, whichever occurs first, and the minimum age for employment in industries with heavy work is 17. Parental permission is required for children younger than age 16 to work. Children under 18 may work no more than six hours a day and may not work overtime or during night shifts, weekends, or on official holidays. Restrictions on child labor do not apply to those who work in family businesses and do not receive a salary.

There was little publicly available information on enforcement of child labor laws. The government generally did not make significant efforts to prevent or eliminate child labor. Independent information and audits regarding government enforcement were not available.

Child labor occurred in the country in both informal sectors such as begging, domestic work, and agriculture, as well as in positions related to the conflict, such as lookouts, spies, and informants. Conflict-related work subjected children to significant dangers of retaliation and violence. Prior to the start of protests in 2011, there was progress in removing children from bonded agricultural labor organizations and street begging schemes, although the outbreak of civil war halted that progress.

d. Discrimination with Respect to Employment or Occupation

The constitution prohibits discrimination based on gender, although personal status and penal laws continued to discriminate. Since homosexuality is a legally prohibited activity (see section 6), many persons faced discrimination on the basis of their sexual orientation. The constitution prohibits discrimination on the basis of disability. There were no reports of government activities to encourage participation or prevent discrimination on the basis of disability. Discrimination in employment and occupation occurred with respect to certain ethnic groups (see section 6).

e. Acceptable Conditions of Work

The law divides public sector monthly minimum wage into five levels based on job type or level of education, varying between 9,765 and 14,760 Syrian pounds (\$53 to \$81) per month. Benefits included compensation for meals, uniforms, and transportation. Most public sector employees relied on bribery to supplement their income. Private sector companies usually paid much higher wages, with lower-end

wage rates semiofficially set by the government and employer organizations. Many workers in the public and private sectors took additional manual jobs or relied on their extended families to support them.

The public sector workweek was 35 hours, and the standard private sector workweek was 40 hours, excluding meals and rest breaks. Hours of work could increase or decrease based on the industry and associated health hazards. The law provides for at least one meal or rest break totaling no less than one hour per day. Employers must schedule hours of work and rest such that workers do not work more than five consecutive hours or 10 hours per day in total. Employers must provide premium pay for overtime work.

The government set occupational safety and health standards. The labor code includes provisions mandating that employers take appropriate precautions to protect workers from hazards inherent to the nature of work.

The Ministry of Social Affairs and Labor is responsible for enforcing the minimum wage and other regulations pertaining to acceptable conditions of work. It did not effectively enforce standards. The Ministries of Health and of Social Affairs and Labor designated officials to inspect worksites for compliance with health and safety standards. Workers could lodge complaints about health and safety conditions with special committees established to adjudicate such cases. Wage and hour regulations as well as occupational health and safety rules do not apply to migrant workers, rendering them more vulnerable to abuse.

There was little information on government enforcement of labor laws or working conditions during the year. There were no health and safety inspections reported, and even previously routine inspections of tourist facilities such as hotels and major restaurants no longer occurred. The enforcement of labor laws was lax in both rural and urban areas, since many inspector positions were vacant due to the violence. Workers who chose to extricate themselves from situations that endangered their health or safety were not protected from losing their employment.

Foreign workers remained vulnerable to exploitative conditions, especially domestic workers. The violence affected foreign workers, some of whom found it difficult to leave the country. The Ministry of Social Affairs and Labor is in charge of regulating employment agencies responsible for providing safe working conditions for migrant domestic workers, but the scope of oversight was unknown. In large cities Asian domestic workers sometimes overstayed their visas and continued to work in the country for years. The continued unrest resulted in the

large-scale voluntary departure of foreign workers as demand for services significantly declined.